

Scoping Report

*NEXTDC S7 Data Centre
1 Kangaroo Avenue
Eastern Creek*

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Report Number	Final

Acknowledgment of Country

Urbis acknowledges the Traditional Custodians of the lands we operate on. We recognise that First Nations sovereignty was never ceded and respect First Nations peoples continuing connection to these lands, waterways and ecosystems for over 60,000 years. We pay our respects to First Nations Elders, past and present.

Urbis is committed to incorporating our respect for First Nations cultures, peoples and storytelling in our work across the Country. We are proud to have partnered with Darug Nation artist, **Hayley Pigram**, and to profile her artwork – **Sacred River Dreaming**.



The river is the symbol of the Dreaming and the journey of life. The circles and lines represent people meeting and connections across time and space. When we are working in different places, we can still be connected and work towards the same goal.

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Glossary and Abbreviations

Reference	Description
ACHAR	Aboriginal Cultural Heritage Assessment Report
AIA	Arboricultural Impact Assessment
AHIP	Aboriginal Heritage Impact Permit
AQIA	Air Quality Impact Assessment
ASS	Acid Sulfate Soils
BC Act	<i>Biodiversity Conservation Act 2016</i>
B&C SEPP	<i>State Environmental Planning Policy (Biodiversity and Conservation) 2021</i>
BC Reg	<i>Biodiversity Conservation Regulation 2017</i>
BDAR	Biodiversity Development Assessment Report
BDCP2015	<i>Blacktown Development Control Plan 2015</i>
BLEP2015	<i>Blacktown Local Environmental Plan 2015</i>
BMP	Biodiversity Management Plan
DCP	Development Control Plan
DDP	Dam Dewatering Plan
DPHI	Department of Planning, Housing and Infrastructure
DSI	Detailed Site Investigation
ECPP	<i>Stage 3 Eastern Creek Precinct Plan</i>
EIS	Environmental Impact Statement
EPL	Environmental Protection Licence
EP&A Act	<i>Environmental Planning and Assessment Act 1979</i>
EP&A Regulation	<i>Environmental Planning and Assessment Regulation 2021</i>
EPBC Act	<i>Environment Protection and Biodiversity Conservation Act 1999</i>
EPA	Environmental Protection Authority
ESD	Ecologically Sustainable Design
HAZMAT	Hazardous Materials
HPC	Housing and Productivity Contributions
I&E SEPP	<i>State Environmental Planning Policy (Industry and Employment) 2021</i>
LEC	Land and Environment Court
LEP	Local Environmental Plan
MNES	Matters of National Environmental Significance

Reference	Description
NVIA	Noise and Vibration Impact Assessment
PoEO Act	<i>Protection of the Environment Operations Act 1997</i>
Planning Systems SEPP	<i>State Environmental Planning Policy (Planning Systems) 2021 Planning Systems SEPP</i>
PMF	Probable Maximum Flood
RAP	Remediation Action Plan
R&H SEPP	<i>State Environmental Planning Policy (Resilience and Hazards) 2021</i>
REAP	Registered Environmental Assessment Planner
RFS	New South Wales Rural Fire Services
Sustainable Buildings SEPP	<i>State Environmental Planning Policy (Sustainable Buildings) 2022</i>
SDRP	State Design Review Panel
SEARs	Secretary's Environmental Assessment Requirements
SEPP	State Environmental Planning Policy
SIA	Social Impact Assessment
Site	The site is legally described as follows: ▪ Lot 13 in Deposited Plan 1302361, and ▪ Lot 7 in Deposited Plan 1225803.
SMP	Salinity Management Plan
SMS	Stormwater Management Strategy
SSD	State Significant Development
SSDA	State Significant Development Application
SWMP	Stormwater Management Plan
T&I SEPP	<i>State Environmental Planning Policy (Transport and Infrastructure) 2021</i>
TPP	Tree Protection Plan
VIA	Visual Impact Assessment
WPC SEPP	<i>State Environmental Planning Policy (Precincts—Western Parkland City) 2021</i>

1 Introduction

This Scoping Report has been prepared on behalf of NEXTDC (**the Applicant**) to facilitate the preparation of project-specific Secretary's Environmental Assessment Requirements (SEARs) for a proposed data centre at 1 Kangaroo Avenue, Eastern Creek (**the site**). The SEARs will guide the preparation of an Environmental Impact Statement (**EIS**) that will accompany a State Significant Development Application (**SSDA**) for assessment by the Department of Planning, Housing and Infrastructure (**DPHI**).

The proposal relates to a data centre development that has a total power consumption exceeding 15 megawatts and is therefore classified as State Significant Development (**SSD**) pursuant to Section 25 of *Schedule 1 of State Environmental Planning Policy (Planning Systems) 2021* (**Planning Systems SEPP**). Following preliminary consultation with DPHI, it was determined that the project requires a Scoping Report to support the issue of the Project-Specific SEARs.

The purpose of this report is to:

- Describe the project in simple terms,
- Analyse the feasible alternatives considered and identify the alternatives that will be investigated further in the EIS,
- Indicate early community views on the project and identify what engagement will be carried out during the preparation of the EIS, and
- Identify the key matters requiring further assessment in the EIS and the proposed approach to assessing each of these matters.

This Scoping Report is supported by the following documents:

- **Appendix A:** Concept Architectural Plans
- **Appendix B:** Design Report
- **Appendix C:** Indicative Renders
- **Appendix D:** Acid Sulfate Soils Risk Assessment
- **Appendix E:** Preliminary VIA Advice
- **Appendix F:** Technical Note –Infrastructure Servicing, and Plant Equipment
- **Appendix G:** SEARs Technical Assessment Methodology

1.1 Applicant Details

The applicant details for the proposed development are listed in the following table.

Table 1 Applicant Details

Proponent	Proponent name
Full name(s)	NEXTDC Limited c/o Urbis Ltd
Postal Address	Level 8/123 Pitt Street, Sydney NSW 2000
ABN	35 143 582 521
Nominated Contact	Christopher Croucamp – Associate Director (Urbis)

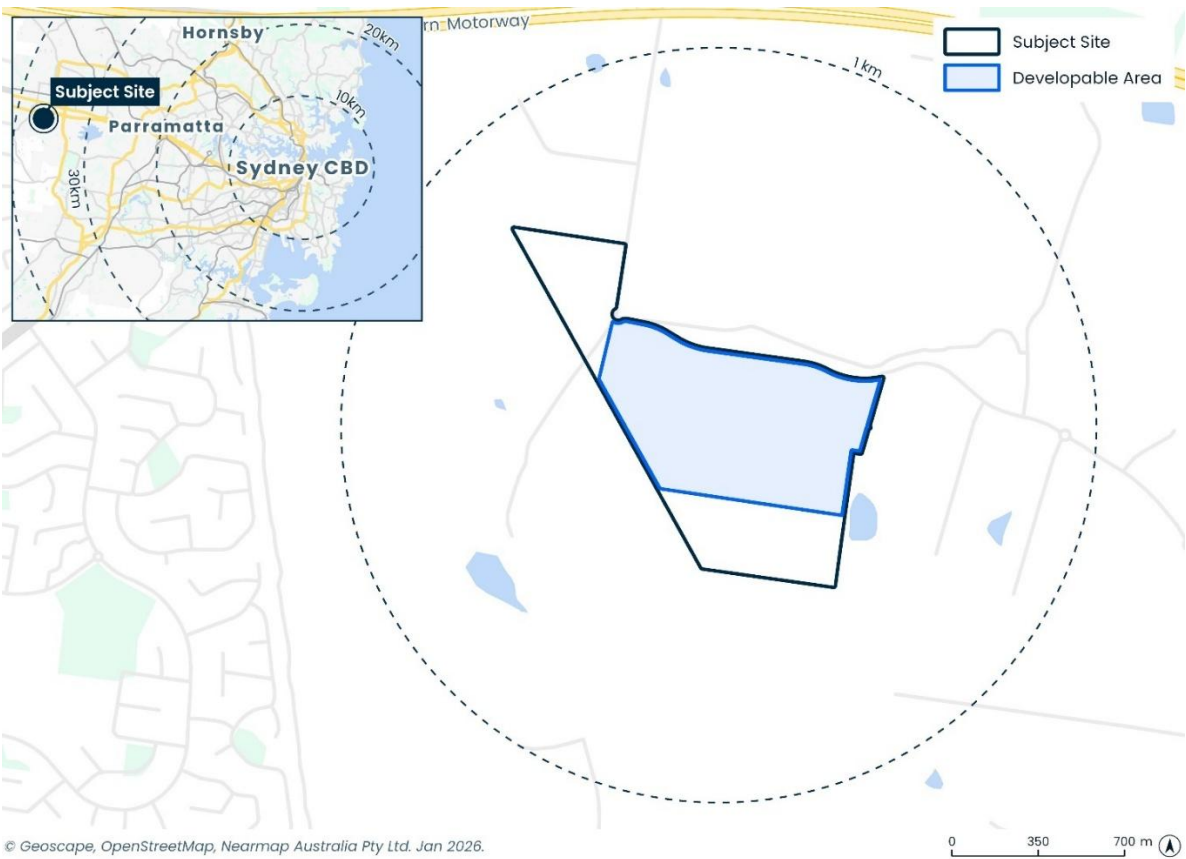
1.2 Project Overview

Table 2 Site and Project Overview

Matter	Description
Country	Dharug Country
Street Address	1 Kangaroo Avenue, Eastern Creek
Legal Description	- Lot 13 in Deposited Plan 1302361, and - Lot 7 in Deposited Plan 1225803.
Site Area	The site is irregular in shape and has a total area of approximately 385,734m ² .
Developable Area	The developable area comprises approximately 255,137 m ² .
LGA	Blacktown City Council
Existing Development	The site comprises predominantly vacant land with areas of remnant vegetation located in the south-eastern corner. The north-eastern portion of the site (Lot 7 in DP1225803) benefits from an existing approval for industrial use, being a concrete and asphalt production facility. The area largely consists of unpaved hardstand areas and remnant vegetation.
Locality Description	The site is in the south-western part of the Blacktown local government area (LGA), approximately 20 kilometres west of Parramatta CBD and 35 kilometres west of the Sydney CBD. It is situated within the Western Sydney Employment Area (WSEA) which extends from Greystanes in the east to Mamre Road in the south-west, including Huntingwood, Eastern Creek and Erskine Park. The M4 Motorway is located to the north, while the M7 Westlink Motorway is located further east. The site has direct frontage to Honeycomb Drive, providing connection to Wonderland Drive to the east and the future Archbold Road extension to the west. The closest bus stops are located on Wonderland Drive and provide services to Blacktown and Mount Druitt via Route 723. The surrounding land uses are characterised as follows: North: The Bingo Eastern Creek Recycling Ecology Park is immediately north of Honeycomb Drive extension. The M4 Motorway and Minchinbury residential area are further north. The closest residential receiver is approximately one kilometre from the site. East: Industrial development associated with the Frasers Precinct is located east of Lot 7 and includes warehouse facilities currently occupied by FDM Warehousing, Multipack-LJM and Rhino-Rack. West: Land to the west is predominantly cleared and includes a transmission easement that provides an opportunity for a direct power supply to the site and future data centre. The future Archbold Road alignment also runs along the western boundary of the site. The Erskine Park residential area lies further west, with the nearest residential receiver approximately 900 metres from the site. South: Land to the south comprises vacant land which includes patches of native vegetation and stormwater infrastructure along the natural watercourse which is to be dedicated to Blacktown City Council. A locality map showing the site in its regional context is provided at Figure 1. An aerial photograph of the site and immediately surrounding land is provided at Figure 2.

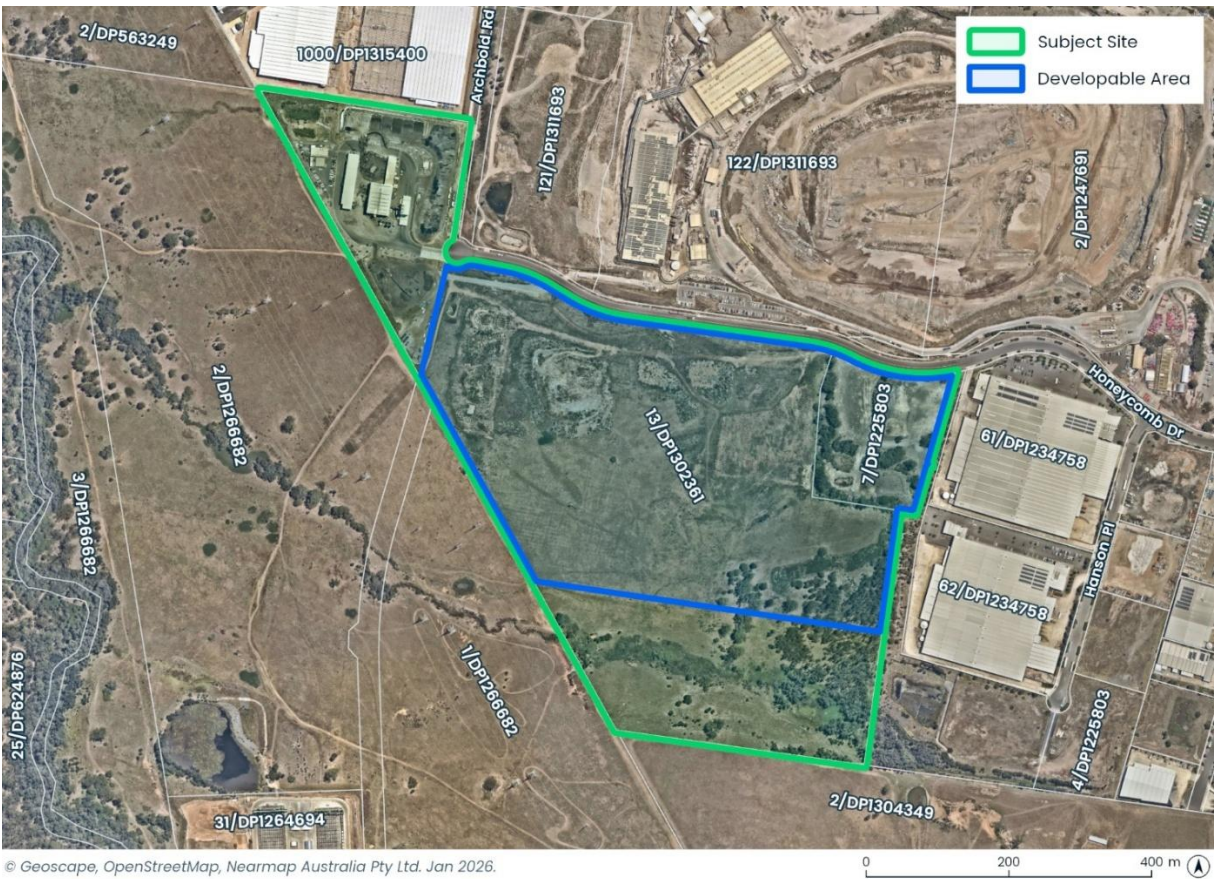
Matter	Description
The Project	
Project Name	NEXTDC S7 Sydney Data Centre
Project Objectives	▪ Improve the accessibility and supply of critical digital storage infrastructure in Eastern Creek, which is an emerging employment precinct, ▪ Encourage employment-generating opportunities and support long term economic sustainability, consistent with the site's industrial zoning and the strategic importance of industrial land within the WSEA, ▪ Support the continued growth of the WSEA as a major hub of employment activity through the provision of key digital infrastructure, ▪ Attract knowledge-based industries and businesses, including in the health and education sectors, by locating high-quality digital infrastructure in proximity to key institutions, ▪ Avoid unacceptable environmental and amenity impacts and provide ongoing compliance with operational legislative requirements, ▪ Retain key existing environmental features of the site and coordinate the design with surrounding approvals, and ▪ Construct and operate the data centre in a sensitive and responsible manner with particular regard to the health and safety of staff and the environment.
Development Stages	▪ Stage 1: Site establishment ▪ Stage 2: Remediation (if required), ▪ Stage 3: Construction, and ▪ Stage 4: Operation.

Figure 1 Locality Map



Source: Urbis, 2026

Figure 2 Aerial Photograph



Source: Urbis, 2026

2 Project Background

2.1 Site and Consent History

The relevant development consents (including approved/pending modifications) are summarised in **Table 3**.

Table 3 Previous Development Consents

DA Number	Description	Status	Relevance to Proposed SSDA
Lot 13 in Deposited Plan 1302361			
DA-21-01557 (as modified)	Blacktown City Council approved an eight-lot industrial subdivision including bulk earthworks, pad sites, retaining walls, Honeycomb Drive, stormwater infrastructure and landscaping (refer Figure 3). The approval was amended via MOD-23-00638 to provide for staging through the creation of super-lots (refer Figure 4). A separate modification application (MOD-23-00703) for the regional stormwater basin, level refinements and vegetation removal (refer Figure 5) remains under assessment by Council.	Approved 26 August 2022 Approved 7 March 2024 (MOD-23-00638), pending approval (MOD-23000703)	The original approval established the industrial development pads, servicing and site access. The approved modification defined the lot configuration and developable area. The pending modification seeks to deliver regional stormwater infrastructure and final earthworks levels.
MP06_0139 (as modified on multiple occasions)	The original approval granted consent for the Genesis Xero Waste Management Facility, including a resource recovery facility and non-putrescible landfill with a material handling capacity of 700 tonnes per annum. Multiple modifications have since been issued to facilitate changes to the approved site operations.	Approved 22 November 2009 Modified 30 September 2010, 9 November 2010, 5 December 2011, 14 December 2013, 17 March 2016, 29 April 2020, 3 March 2021, 11 March 2022, 30 August 2022, 11 October 2022, 27 October 2022, 1 May 2024, 18 October 2024, 30 April 2025 and 26 November 2025	The site is within the Consent Area (120 hectares) of MP06_0139, however, it does not form part of the Operational Area (65.99 hectares) which includes the landfill void and resource recovery activities to its west.
Lot 7 in Deposited Plan 1225803			
MP06_0225	Subdivision, bulk earthworks and industrial operations including asphalt and concrete production facilities	Approved 2010	Established surrounding industrial context and servicing framework

The approved industrial subdivision which created Lot 13 (**DA-21-01557**, as modified) provides for the delivery of serviced industrial land which can accommodate a data centre development. The pending modification (**MOD-23-00703**) seeks to deliver a regional stormwater management system (and associated biodiversity impacts) in collaboration with Blacktown City Council. The final detailed design issues are being resolved to enable approval of the modified layout in early March 2026 (pending Council's final assessment).

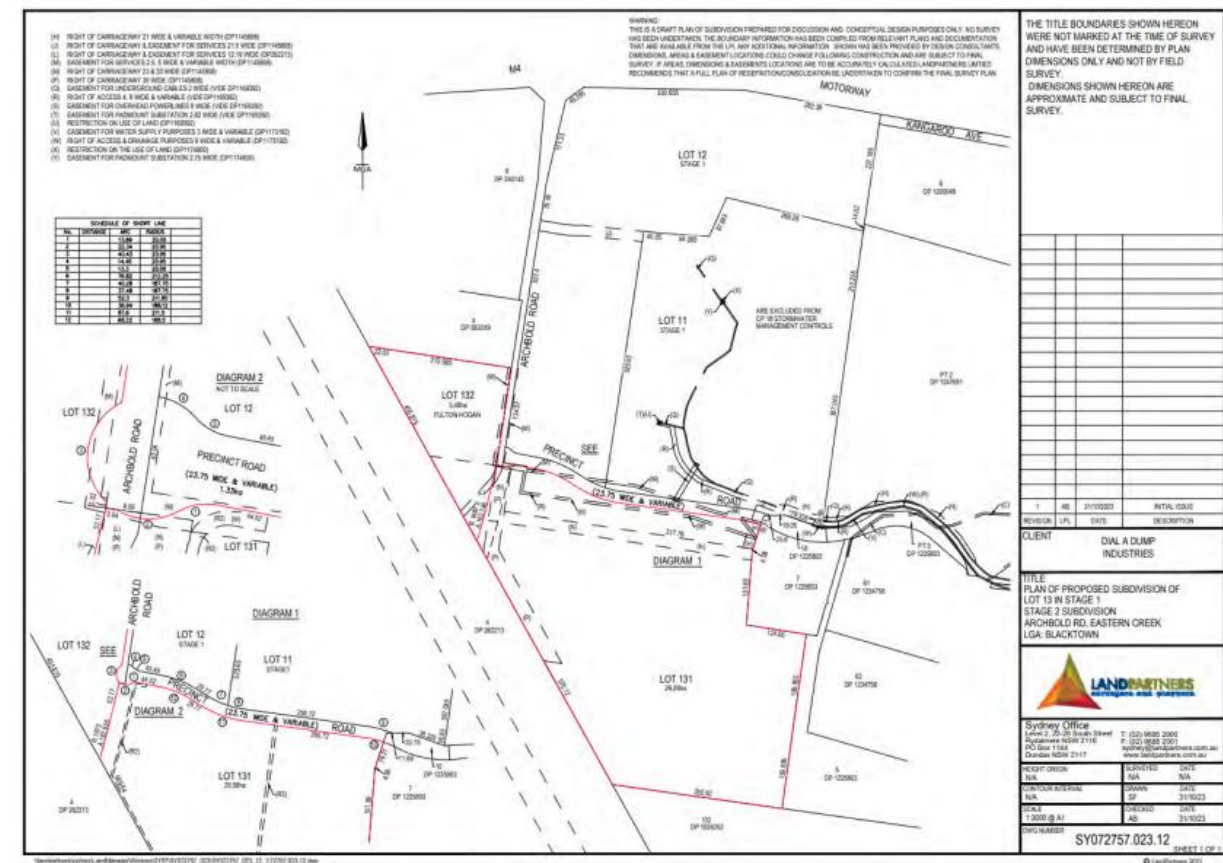
Modification 9 to MP06_0139 was approved 30 April 2025 and included changes to the original site description based on the above subdivision approval. While the developable area remains within the Consent Area (120 hectares) of MP06_0139, the following matters are relevant:

- Lot 13 does not form part of the Operational Area as shown with the blue line of the current approval.
- Lot 13 does not appear to be subject to environment protection licenses issued by the NSW Environment Protection Authority (refer pages 14-15 of the Assessment Report for Modification 9).
- The stormwater management requirements have been resolved through the subdivision approval issued by Blacktown City Council or will be resolved via the pending modification.
- The consent conditions do not appear to include any matters which would create conflicts with any future SSDA approval on Lot 13. However, if required, MP06_0139 could be modified to remove Lot 13 from the current Consent boundary as shown within the red line of the current approval.
- Consideration will be given to the potential cumulative impacts of the proposed data centre and the activities on the adjoining land within the Operational Area of MP06_0139 (refer **Section 3.3**).

The developable area also includes additional land to the north-east (Lot 7) which did not form part of the detailed assessment undertaken in association with the industrial subdivision. Further assessment of the potential environmental impacts associated with this land will be required, including its key site features and former land use activities, eg Aboriginal cultural heritage, biodiversity, site contamination/remediation, etc.

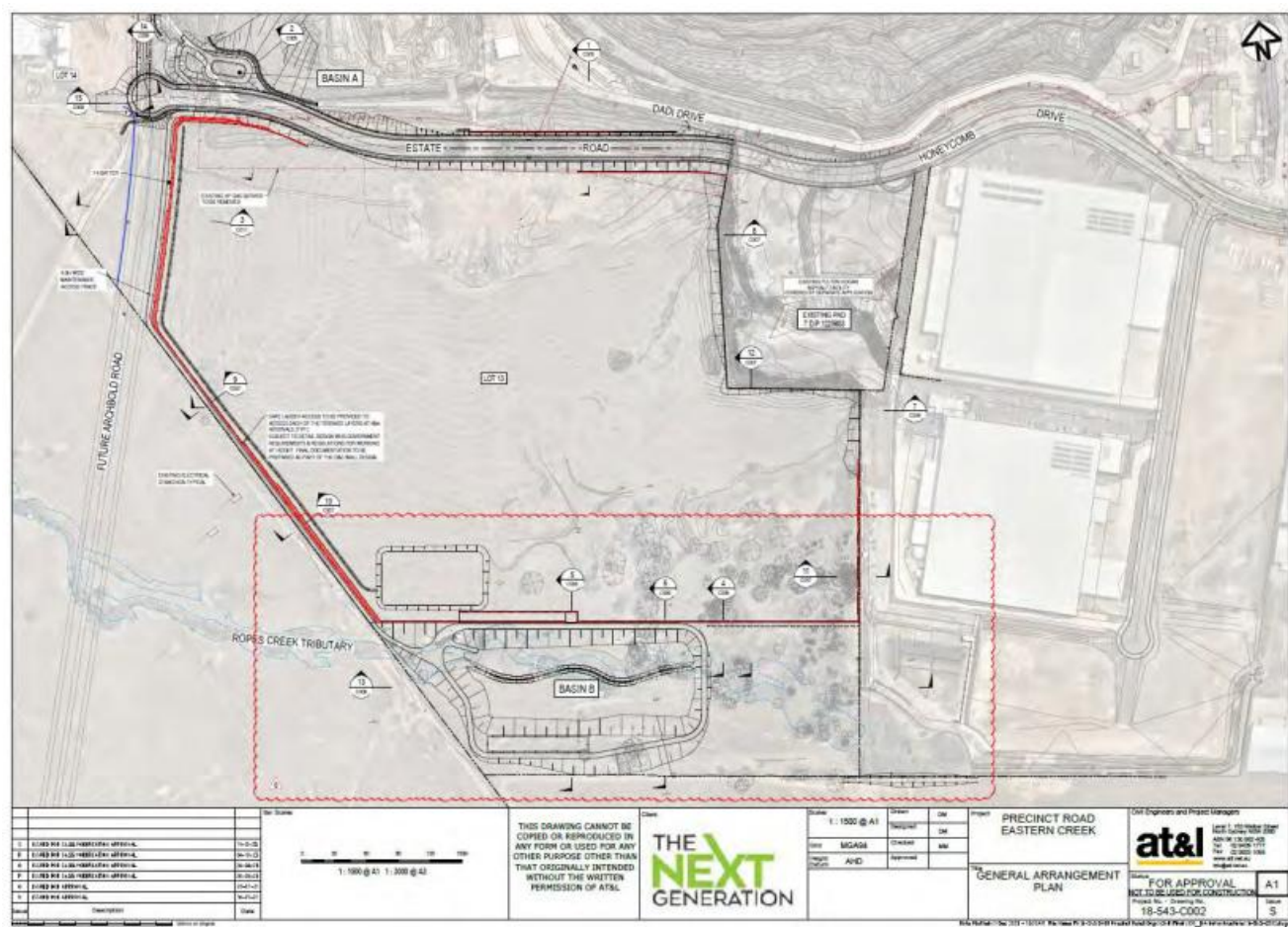
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Figure 4 Modified Subdivision Plan



Source: Land Partners, 2023

Figure 5 Modified Civil Plan (pending approval)



Source: AT&L, 2023

2.2 Project Rationale

The rationale for the project including need and site selection is described in **Table 4** below.

Table 4 Project Rationale

Project Detail	Commentary
Project Need	- Supports the NSW Government’s ambition to be a leading digital economy in the Asia-Pacific region, - Improves the national performance of data networks available for the purposes of artificial intelligence, automation, analytics and security, - Generates direct employment in construction, operations, and maintenance, as well as indirect jobs in technology, engineering, and security, - Reduces reliance on overseas facilities, strengthening local infrastructure that directly contributes to the digital economy, - Improves the resilience and reliability of digital infrastructure during network disruptions or failures, and - Encourages global investment in the growing industrial precincts of NSW
Site Selection	The selection of the site is based on the following criteria established by the applicant– Within the Sydney basin,

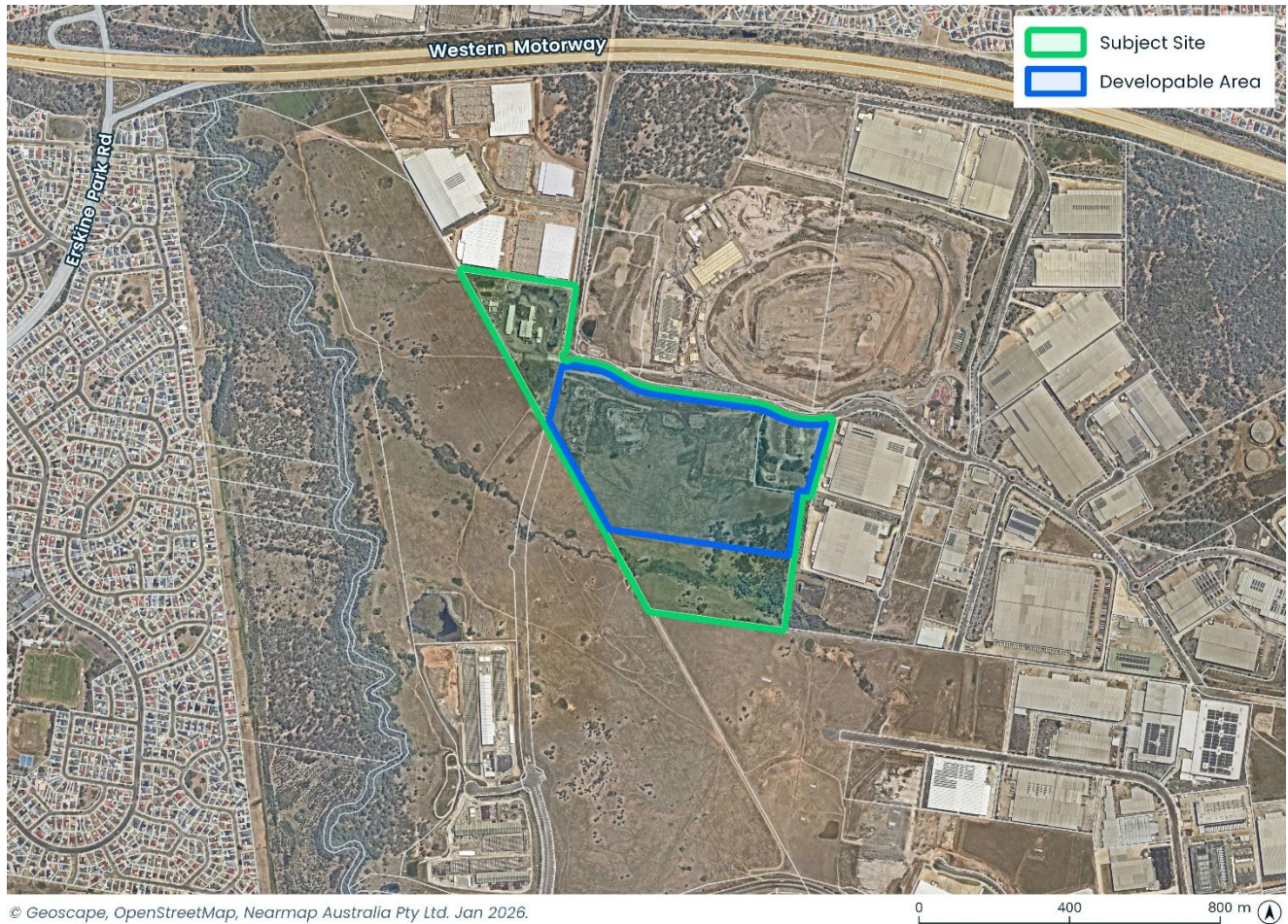
Project Detail	Commentary
	▪ Close to key customers, ▪ Within a suitably sized and serviced parcel of land, ▪ Close to key digital (optic fibre) backbones, ▪ Within proximity to travel and transport networks for operational staff, ▪ In a location with high resilience and lower sensitivity to amenity impacts, ▪ Close to the TransGrid Sydney West substation for power supply, ▪ In a geotechnically stable location, and ▪ In an area less susceptible to natural disasters or other shocks or stresses such as terrorism. Several locations across Sydney and Western Sydney were assessed. The assessed sites were deemed unsuitable, whilst others were shortlisted for further assessment. The selected site was deemed appropriate based on the abovementioned criteria. Additionally, the site is located within a growing industrial precinct that is within direct proximity to established transport networks, water supply and electrical infrastructure.
Development required for the project but would be subject to a separate assessment.	▪ External transmission line connecting the site to the TransGrid Sydney West substation for power supply, to be undertaken and approved by TransGrid under its own regulatory framework, ▪ Approval of MOD-23-00703 which will establish new site levels, amended retaining walls and stormwater infrastructure, and ▪ Connection or alteration to the existing water, sewer, and telecommunications infrastructure in the area.

3 Strategic Context

3.1 Key Features

The site occupies a strategic position within the WSEA, an established and emerging hub for data centre development in Western Sydney. The local context is identified in **Figure 6**, and photographs of the existing site conditions are provided in **Figure 7**.

Figure 6 Local Context



Source: Urbis, 2026

Figure 7 Site Photos



Picture 1 Northeastern corner of site from Honeycomb Drive

Source: Google Maps, 2026



Picture 2 Northwest corner of site from Honeycomb Drive

Source: Google Maps, 2026



Picture 3 Central section of site, facing south

Source: Abel Ecology, 2021



Picture 4 Central north section of site, facing Lot 7

Source: Abel Ecology, 2021



Picture 5 Central section of site, facing south

Source: Abel Ecology, 2021



Picture 6 Central north section of site, facing Lot 7

Source: Abel Ecology, 2021

The key features of the site which have the potential to impact or be impacted by the proposed development are summarised in the table below.

Table 5 Key Features of Site and Locality

Descriptor	Site Detail
Land Configuration	The subject site is an irregular shaped allotment with a total approximate area of 385,734m². It comprises two lot parcels, being Lot 13 in Deposited Plan 1302361 and Lot 7 in Deposited Plan 1225803. The developable area is approximately 255,137m². It excludes 69,216m² in the southern portion of the site which will accommodate a regional stormwater detention basin. It also excludes 54,727m² within the northwestern panhandle, 5,317m² reserved for the future Archbold Road extension, and 1,337m² allocated for a future access road to the southern portion of the site. The site currently falls from approximately RL80.00 at the northern boundary to between RL 60.00 and RL 55.00 at the southern boundary, representing an overall change in elevation up approximately 25 metres. DA-21-01557 includes approval for a substantial retaining wall in the southern part of the site, accommodating an approximate level change of 15 metres. This approval is currently subject to modification under MOD-23-00703 for minor layout amendments.
Site Access and Road Network	Vehicle access is provided via Honeycomb Drive along the northern boundary of the site. The proposal provides four vehicle entry points: one to service direct access to the substation, one for staff vehicles and a truck ingress and egress crossover to ensure circulation in a forward-facing direction. The future Archbold Road extension is identified as a Proposed Road on the Transport and Arterial Road Infrastructure Plan Map and may provide an additional connection to the site. Any future connection will be subject to further consideration once staging and delivery timeframes are confirmed.
Easements and Covenants	The site is subject to the following easements and covenants: <u>Lot 13 in Deposited Plan 1302361</u> ▪ Right of carriageway 21 metres wide and variable width (DP1145808) in the north-eastern part of the site (H), ▪ Right of carriageway and easement for services 12.19 metres wide (DP262213) in the north-western corner adjacent to Archbold Road (L), ▪ Easement for services 2.5 metres, 5 metres and variable width (DP1145808) in an east-west direction along the front boundary of the site (M), ▪ Right of carriageway 23 metres and 30 metres wide (DP1145808) along the full width of the site to the north (N), ▪ Right of carriageway 30 metres wide (DP1145808) along the western boundary of the site from Archbold Road (P), and ▪ Right of access 4 metres, 9 metres and variable width (vide 1169392) in an east-west direction along the front boundary of the site and north-south through the western and central parts of the site (R)(R2)(R3). <u>Lot 7 in Deposited Plan 1225803</u> ▪ Right of carriageway over the eastern part of the site (D227638) (GG), ▪ Easement for services 4 metres wide and of variable width (AC762292) & (AC762293) over the eastern part of the site (HH), and ▪ Easement to drain water over the whole of the lot (W).

Descriptor	Site Detail
Services & Utilities	<u>Power</u> The TransGrid Sydney West 330/132kV Substation is located approximately one kilometre to the south of the site. A transmission easement immediately to the west provides a direct connection opportunity, enabling power to be supplied via existing infrastructure from day one. <u>Water</u> The site has access to existing water servicing infrastructure. From commencement, the development will utilise available infrastructure as required, while a recycled water solution is actively being explored in collaboration with Sydney Water and Conexa to support the site's long term operational water strategy.
Transport Infrastructure	The site is well-serviced by public and private transport routes. The M4 Motorway is located to the north, while the M7 Westlink Motorway is located further east. The site has a direct frontage to Honeycomb Drive which links to Wonderland Drive to the east and the future Archbold Road extension to the west. The closest bus stops are on Wonderland Drive, providing services to Blacktown and Mount Druitt via Route 723.
Acid Sulfate Soils	The site is not within an area of known acid sulfate soil occurrence. No indicators of acid sulfate soils were observed during the field investigations undertaken for previous applications, including DA-21-01557.
Contamination	Previous contamination investigations for Lot 13 identified contaminants at concentrations suitable for commercial and industrial land uses. Lot 7 was historically used as a concrete and asphalt plant and will require further investigation to confirm contamination risks.
Salinity	The site is within an area of moderate salinity potential.
Stormwater and Flooding	The site is not located within a flood planning area or between the flood planning area and Probably Maximum Flood (PMF) as per Council's Flooding Map. Flood modelling undertaken for DA-21-01557 confirmed creek flood levels are at least 2 metres below the proposed finished site levels, and Lot 7 is also outside mapped flood-prone land.
Bushfire Prone Land	The site is partially mapped as bushfire prone land, including areas of Vegetation Category 3 and Vegetation Buffer within the southern portion of the site, affecting approximately half of the development footprint. The proposal includes removal of remnant vegetation in this area, reducing potential bushfire risk.
Biodiversity and Vegetation	Lot 13 contains areas mapped on the Biodiversity Values Map in the south-eastern portion of the site. Vegetation within this area is proposed to be removed under Modification Application MOD-23-00703 and does not form part of the works assessed in this EIS. Lot 7 is not mapped on the Biodiversity Values Map, however, it contains vegetation that is proposed for removal.
Aboriginal Heritage	The site lies within an area of potential archaeological sensitivity. Previous investigations identified a low-significance Aboriginal archaeological item in the south-eastern corner.
European Heritage	There are no items of local or State heritage significance situated on the site, nor is the site located within a Heritage Conservation Area.
Riparian Corridor	The site includes a mapped riparian corridor in the southern section, which traverses the bioretention basin and contains native vegetation. The proposed data centre footprint does not encroach upon or overlap with this corridor. Any works or

Descriptor	Site Detail
	amendments associated with MOD-23-00703 will be assessed and approved independently of this SSDA.
Voluntary Planning Agreement	Lot 7 formed part of the Hanson Concrete and Asphalt Facility and was subject to a VPA requiring contributions to the M7 and regional road network, development contributions, internal roads, stormwater works and a detention basin. These obligations are understood to have been satisfied. Lot 13 is subject to VPAs relating to regional transport infrastructure and the delivery of stormwater infrastructure, including a detention basin, bioretention basin, GPT and drainage line. This infrastructure area is anticipated to be subject to a Works-in-Kind or acquisition arrangement following determination of MOD-23-00703.

3.2 Project Justification

Table 6 Strategic Context

Plan	Detail
Draft Sydney Plan	The draft Sydney Plan is the NSW Government's long-term strategic framework guiding Sydney's growth to 2056. The Plan emphasises transport-oriented development and the co-location of jobs, services and housing to reduce travel times and support local communities. The site is within identified employment lands in Western Sydney, a region that contributes approximately \$79 billion to Sydney's economy through manufacturing, construction, warehousing, transport and logistics. The proposed data centre aligns with the following objectives of the draft Plan: ▪ Response 4: Grow well-located jobs The development locates high-value digital infrastructure near major transport corridors, freight networks and Western Sydney International Airport, supporting employment clusters and efficient access for workers and service providers. ▪ Response 5: Align infrastructure with planned growth Data centres rely on high-capacity power, fibre connectivity and reliable servicing already available or planned in the precinct, supporting orderly development and infrastructure investment sequencing. ▪ Response 8: Secure an ongoing pipeline of productive industrial lands By accommodating a data centre within a planned employment area, the proposal supports the retention, diversification and long-term viability of industrial land uses within Western Sydney.
Greater Sydney Region Plan – A Metropolis of Three Cities	The <i>Greater Sydney Region Plan: A Metropolis of Three Cities – connecting people</i> (Region Plan) provides the overarching framework for growth in Sydney over a 20-year period with a 40-year vision. The site is within the Central River City and the Western Sydney Employment Area, an industrial and employment precinct with strong transport connections. The proposed data centre is consistent with the following objectives: ▪ Objective 1. Infrastructure supports the three cities A data centre proposal will improve accessibility and supply of critical new digital storage infrastructure in Eastern Creek which is an emerging employment precinct.

Plan	Detail
	▪ Objective 7. Jobs and skills for the city The proposal would encourage employment-generating opportunities and economic prosperity, which has positive influences on the wider locality. The site is zoned for industrial purposes. Industrial zoned land is identified as vital in providing increased employment opportunities within the Central River City. ▪ Objective 24. Economic sectors are targeted for success The proposal aligns with the vision of the objective as it will support the continued growth of the WSEA as a hub of employment activity through the co-location of key digital infrastructure near to innovative technology businesses.
Our Greater Sydney 2056: Central City District Plan	<i>Our Greater Sydney 2056: District Plan – connecting communities</i> (‘the District Plan’) is a 20-year plan to implement the Region Plan. The Plan anticipates significant growth in Blacktown and provides for a transition from traditional industry to advanced manufacturing. The proposal supports this growth through co-location of high-capacity digital infrastructure with major technology and employment uses in the WSEA. The proposed data centre aligns with following key planning priorities of the District Plan: ▪ Planning Priority C1 – Planning for a city supported by infrastructure Provides critical digital infrastructure supporting nearby employment, health and education uses, including research, innovation and service delivery. ▪ Planning Priority C10 – Growing investment, business opportunities and jobs in strategic centres Supports investment and employment within the Greater Penrith to Eastern Creek Growth Area by introducing a compatible employment-generating use that strengthens business activity in the locality.
Blacktown Local Strategic Planning Statement 2020	The <i>Blacktown Local Strategic Planning Statement 2020 (LSPS)</i> seeks to implement the Region Plan and District Plan, setting a 20-year vision. The site is in the Mount Druitt Precinct and WSEA, with development to increase employment, industry and services and support industrial, distribution and warehousing activities. The proposal aligns with the following planning priorities: ▪ Planning Priority 1 – Planning for a city supported by infrastructure The site is well connected to the regional road network at the intersection of the M4 Motorway, Westlink M7 and Wallgrove Road. The proposal utilises existing and planned infrastructure, including anticipated Archbold Road upgrades, and provides digital infrastructure supporting growth in Eastern Creek. ▪ Planning Priority 9 – Maximising opportunities to attract advanced manufacturing and innovation in industrial and urban services land The proposal contributes to growing investment, business opportunities and job creation in the emerging industry cluster at Eastern Creek. The proposed data centre will create additional jobs in the region and promote the ongoing growth of innovative technologies in the job market of the future. ▪ Planning Priority 10 – Growing targeted industry sectors The proposal would attract knowledge-based industries and businesses including in the health and education sectors by collocating digital infrastructure close to these key institutions.

Plan	Detail
Employment Lands Precinct Plan – Eastern Creek Precinct Plan	The <i>Employment Lands Precinct Plan – Eastern Creek Precinct</i> (the Precinct Plan) seeks to support economic growth and employment in Central Western Sydney through coordinated infrastructure, sustainable development and high-quality industrial environments, while protecting environmental and heritage values and ensuring efficient servicing and transport networks. The proposed data centre is consistent with the vision of the Precinct Plan: ▪ Objective 1.5.2(a) – Promote economic growth and employment opportunities within Central Western Sydney Provides high-value digital infrastructure that attracts technology investment and generates employment, including approximately 425 full-time equivalent jobs and around 2,000 construction jobs. ▪ Objective 1.5.2.(b) – Ensure the orderly provision of infrastructure and services Locates digital infrastructure adjacent to the M4–M7 interchange and planned road upgrades, with immediate access to key services including electricity supply, water infrastructure and servicing easements.
Industrial Lands Action Plan	The <i>NSW Industrial Lands Action Plan</i> (the Action Plan) is a state government framework designed to protect, manage and grow industrial land so it can support economic activity, housing delivery and infrastructure investment over the long term. Its focus is on ensuring NSW has the right industrial land, in the right places, at the right time. The plan responds to increasing pressure on industrial land from population growth, housing demand and land use change, particularly in Greater Sydney. It recognises industrial land as critical infrastructure that underpins freight, logistics, manufacturing, construction and services. The proposal aligns with the following actions outlined in the Action Plan: ▪ Action 2 – Planning policy interventions to support the intensification of state or regionally significant industrial lands The site is strategically located within an established industrial precinct, supported by an existing planning framework that encourages the intensification of uses. The proposal presents an opportunity to leverage well-serviced industrial land and capitalise on the area’s active development pipeline. ▪ Action 3 – Statewide approach for an industrial lands supply pipeline The WSEA is identified as a key area of the industrial lands required to establish greater supply of industrial projects for the state development pipeline. The development-ready land available at the site will contribute to a quicker timeline for the data centre development, actioning the goals set in place by the NSW government ▪ Action 4 – Employment Land Development Program to manage supply and coordinate infrastructure investment The construction and operation of the proposed data centre will generate significant employment opportunities aligned with the land development program. Supported by substantial investment in the WSEA, the scale, EDC and employment opportunities included in the proposal will strengthen future investment prospects.

3.3 Cumulative Impacts

Approved and likely future developments which may be relevant in the cumulative impact assessment of the proposal are summarised in the following table.

Table 7 Nearby Projects

SSDA Reference	Development Description	Current Status	Distance from subject site
SSD- 77020757	Oakdale East Industrial Estate, Precinct 2 – Proposed staged construction of four warehouse and distribution centres at 2-10 Old Wallgrove Road, Horsley Park.	Under assessment	2.15km
SSD-101067971	Project Atlas Data Centre Eastern Creek – Demolition of existing buildings and construction/operation of a 500MVA data centre at 10 Roberts Road, including offsite enabling infrastructure.	Preparation of SEARs request	1.20km
SSD-11606719	Eastern Creek Recycling Ecology Park Throughput Increase – Increase in throughput of an existing Recycling Ecology Park including upgrade of supporting site infrastructure at 1 Kangaroo Avenue, Eastern Creek	Response to submissions	<1km
SSD-47320208	Project Echidna Data Centre Eastern Creek – The Construction and Operation of a Data Centre with an operational capacity of 35MW including data hall fitout, associated emergency back-up generators and cooling plant, office space, equipment rooms and car parking.	Approved: 5 April 2024	1.25km
SSD-63741210	NEXTDC S4 Data Centre, Horsley Park – 6 data centre buildings (250 MW capacity), substation, car parking and landscaping at 16 Johnston Crescent, Horsley Park.	Approved: 24 December 2025	2.48km
SSD-82211208	STACK SYD01 Data Centre, Erskine Park – Construction and operation of a data centre with an operational capacity of 450 MW including a building height of 24 m, 82,020 sqm of GFA, substation, water storage, ancillary infrastructure and landscaping at 78 Lockwood Road, Erskine Park.	Response to Submissions	1.60km
MP06_0139	Eastern Creek Recycling Ecology Park – The original approval granted consent for the Genesis Xero Waste Management Facility, including a resource recovery facility and non-putrescible landfill with a material handling capacity of 700 tonnes per annum. The latest modification relates to the construction and operation of a new Leachate Treatment Plant to replace the existing LTP.	Approved 22 November 2009, Latest Modification Approved: 26 November 2025	<1km
Other relevant references			
Review of Environmental	Transport for NSW proposes to upgrade and extend Archbold Road to accommodate traffic growth	Under assessment	<1km

SSDA Reference	Development Description	Current Status	Distance from subject site
Factors – Archbold Road Extension	associated with ongoing development in Western Sydney. The project would extend the road south from the M4 Motorway at Minchinbury to the proposed Southern Link Road in Horsley Park and includes earthworks, duplication of the existing carriageway, construction of a new dual four-lane carriageway and associated infrastructure. The project is currently under assessment and is located within approximately 1 km of the site.		

The potential cumulative impacts of the project will be addressed in the EIS in accordance with the DPHI *Assessing Cumulative Impacts* guidelines. This includes consideration of the following matters:

- Other SSD and State significant infrastructure (**SSI**) projects,
- Projects that are classified as designated development and require an EIS,
- Projects that require assessment under division 5.1 of the EP&A Act that are likely to significantly affect the environment and require an EIS,
- Projects that have been declared to be controlled actions under the *Commonwealth Environment Protection and Biodiversity Conservation Act 1999* (**EPBC Act**), and
- Any major greenfield and urban renewal developments that are scheduled for the area (e.g. new areas zoned for urban development).

A map showing nearby approved and likely future developments relevant to the cumulative impact assessment is provided at **Figure 8**.

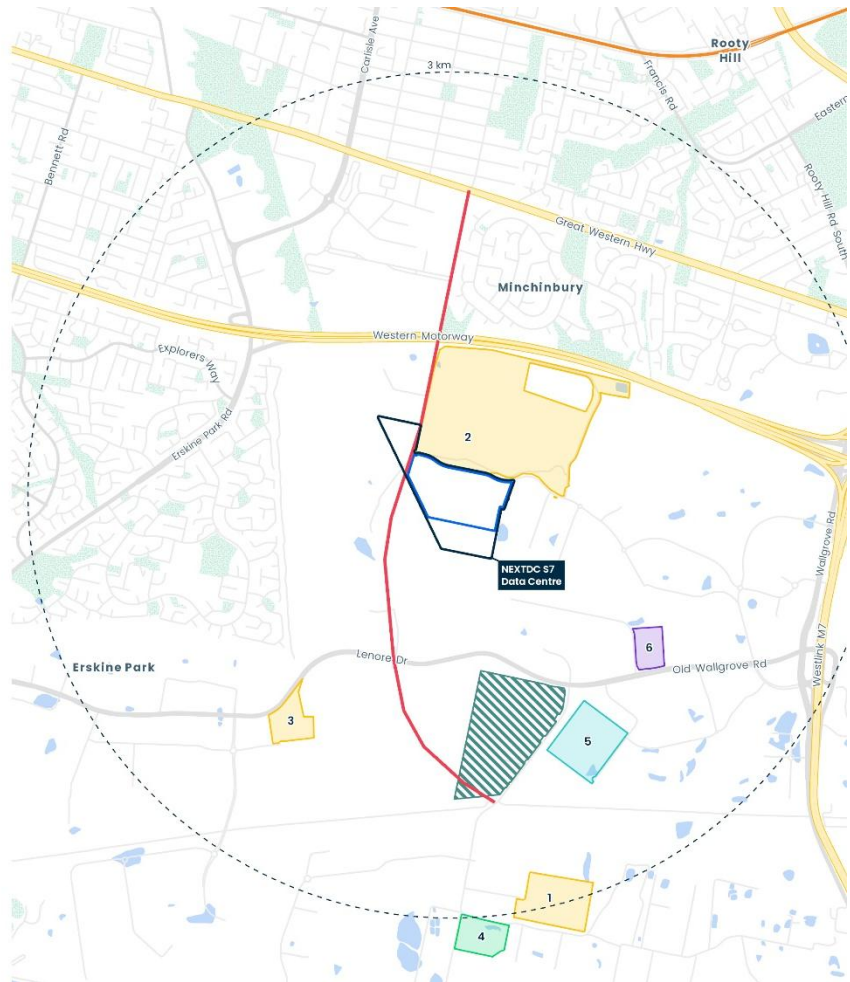
Figure 8 Surrounding Development Approvals Map

- Subject Site
 - Developable Area
 - Transgrid Substation Site
 - Proposed Road Infrastructure
- Current Status**
- Approved
 - Under Construction
 - Under Assessment
 - Under Preparation

ID	SSDA Name
1	Oakdale East Industrial Estate, Precinct 2
2	Eastern Creek REP Throughput Increase
3	STACK SYD01 Data Centre, Erskine Park
4	NEXTDC S4 Data Centre Horsley Park
5	Project Atlas Data Centre Eastern Creek
6	Project Echidna Data Centre Eastern Creek

0 0.5 1 km

© Geoscape, OpenStreetMap,
Nearmap Australia Pty Ltd. Feb 2026.



Source: Urbis, 2026

4 Project

The project relates to the construction and operation of a data centre. The project will include site preparation works, bulk earthworks and infrastructure, and construction of the buildings, ancillary facilities, and associated site works. The key components of the proposed development are listed in the following table. A copy of the Concept Architectural Plans is attached as **Appendix A**.

4.1 Proposed Development

Table 8 Summary of Project

Key Element	Proposal
Project Area	The site is irregular in shape and has a total area of approximately 385,734m ² . The developable area comprises approximately 255,137m ² .
Proposed Use	The proposed use is for a data centre with ancillary offices.
Project Description	The project includes the construction and operation of a data centre comprising: ▪ Site establishment works including required tree removal and earthworks, ▪ Construction of three interconnected two-storey data storage buildings accommodating a total of 66 data halls – these are referred to as: – Block A, – Block B, – Block C, ▪ Internal roads and vehicle crossovers, ▪ On-site car parking and loading areas, ▪ Required utilities and services including on-site substation, and ▪ Associated landscaping.
Gross Floor Area	The proposal provides an approximate total GFA of 174,411 m², comprising: ▪ Data halls: 86,494m² ▪ Ancillary office areas: 4,552m² ▪ Security operations centres: 360m²
Building Height	▪ Block A: 22.41m ▪ Block B: 22.41m ▪ Block C: 22.41m
Floor Space Ratio	0.684:1
Site Coverage	Developable area: 55.1% Entire site: 27.98%
Deep Soil Area	Developable area: 18,143.71m ² (7.1%)
Car Parking	330 car parking spaces
Required Utilities	Diesel Fuel Tanks Above-ground belly tanks will provide approximately 24-hour diesel storage for backup generation. Final quantities will be confirmed during detailed design.

Key Element	Proposal
	Industrial Water Tanks Above-ground industrial water tanks will be located on the eastern side of the site, with capacity sized to operational requirements. Final design and storage volumes may be refined. Water Connection Water infrastructure is available to the site via the existing DN375 DICL main along Honeycomb Drive to the north, with two service connections proposed to enable servicing from commencement. Demand estimates, inclusive of domestic, industrial and fire services, are currently being finalised. In parallel, a recycled water solution is being progressed in collaboration with Sydney Water and Conexa, with the objective of integrating recycled supply into the site's operational water strategy. Fire Water Dedicated above-ground fire water tanks will be located adjacent to the industrial tanks to supply hydrants, sprinklers and hoses. Tank specifications will be confirmed at detailed design stage. Substation An on-site substation will be located in the western portion of the site adjacent to the transmission easement, enabling connection to the TransGrid Sydney West 330/132 kV Substation approximately 1 km south. The facility will include a 330 kV switching station and 33 kV switch room capable of supporting a 612 MW data centre. Backup Power Supply Approximately 320 to 340 prime-rated diesel generators (3.1 MW each) will supply IT and mechanical loads, with additional smaller units for ancillary services. Generators will undergo routine testing, including annual load bank testing typically up to one hour in duration. Sewer The site will connect to an existing sewer manhole at the intersection of Honeycomb Drive and Archbold Road.
Power Consumption	612MW
Operations and Management	The facility will be constructed and operated by NEXTDC. The site will be operational on a 24-hour, 7 day a week basis.
Existing Services and Infrastructure	Existing services and infrastructure will be extended, adapted and augmented to meet the demands of the project.
Expected Capital Investment Value	\$7,154,563,995.00
Staging/Phasing	▪ Stage 1: Site establishment ▪ Stage 2: Remediation (if required), ▪ Stage 3: Construction, and ▪ Stage 4: Operation.
Jobs	▪ Construction: Approximately 2,000 FTE construction roles with an expected construction peak of approximately 500 workers on site at any given time, and

Key Element	Proposal
	Operation: Approximately 425 FTE roles with an expected maximum of 258 staff on the site at any given time.

Indicative renders of the proposed development are provided in the following figures and attached at **Appendix C**.

Figure 9 Indicative Render showing the view toward the site from the north-east along Honeycomb Drive.



Source: Architectus, 2026

Figure 10 Indicative Render showing the view toward the site from the southern boundary of the site.



Source: Architectus, 2026

Figure 11 Indicative Render showing the view toward the site from the north west including the approved retaining wall configuration.



Source: Architectus, 2026

Figure 12 Indicative Render showing the view toward the site from the south west from future Archibold Road.



Source: Architectus, 2026

Figure 13 Indicative Render showing the birds eye view of eastern boundary.



Source: Architectus, 2026

4.2 Detailed Development Description

4.2.1 Project Area

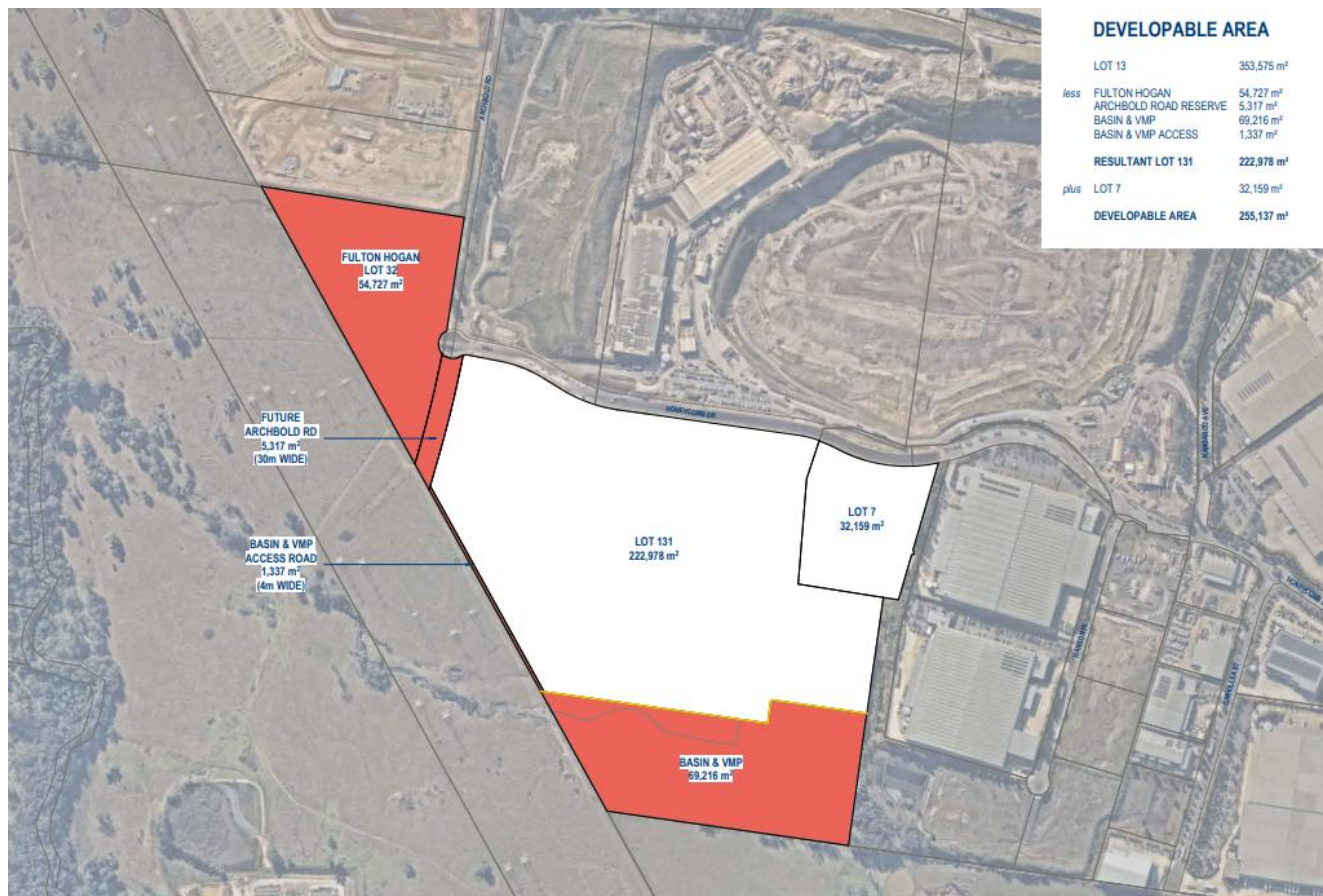
The site has a total area of approximately 385,734 m² and comprises the following:

- Lot 13: 353,375 m²
- Lot 7: 32,159 m²

The Proposed Subdivision Plan shown in **Figure 14** confirms the developable area of approximately 255,137m². This excludes the following areas:

- 69,216m² in the southern portion for a bioretention basin (intended for Council acquisition),
- 54,727m² of Fulton Hogan land within the north-western panhandle,
- 5,317m² reserved for the future Archbold Road extension, and
- 1,337m² allocated for a future access road to the southern portion of the site.

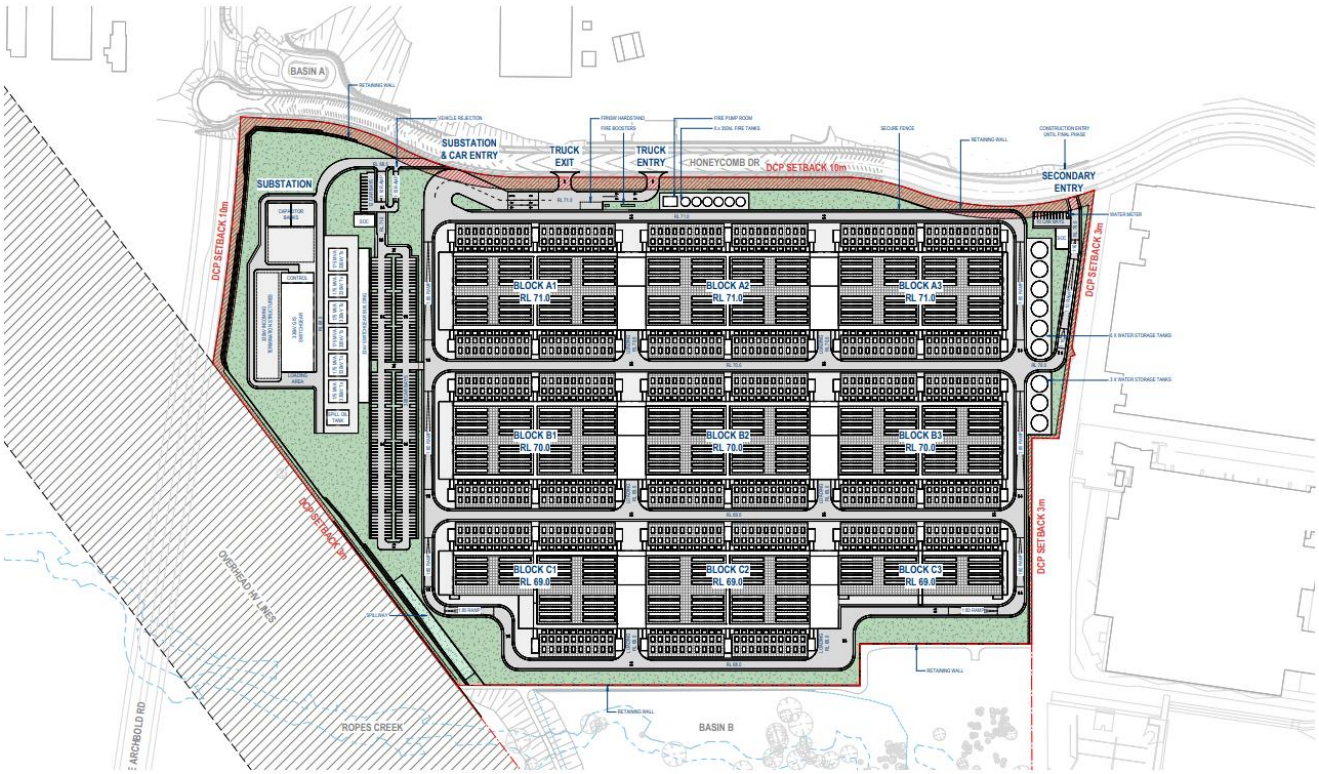
Figure 14 Proposed Subdivision Plan



Source: Architectus, 2026

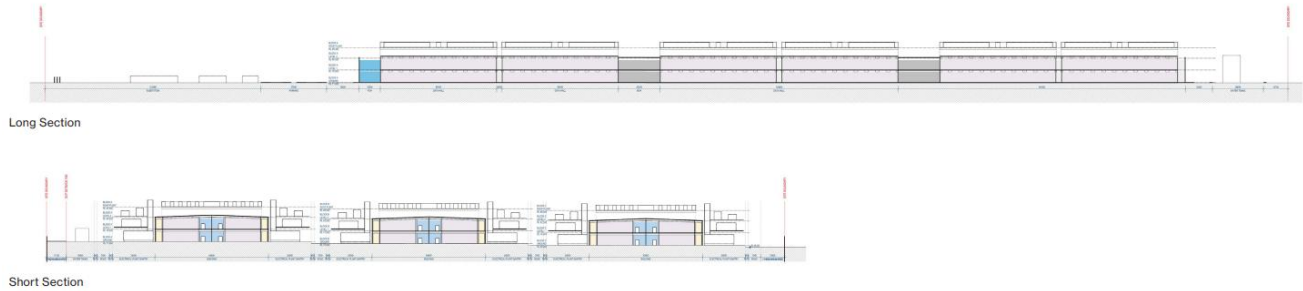
A site plan is provided at **Figure 15**, a section plan is provided at **Figure 16** and a block diagram of the project is provided at **Figure 17**.

Figure 15 Proposed Site Plan



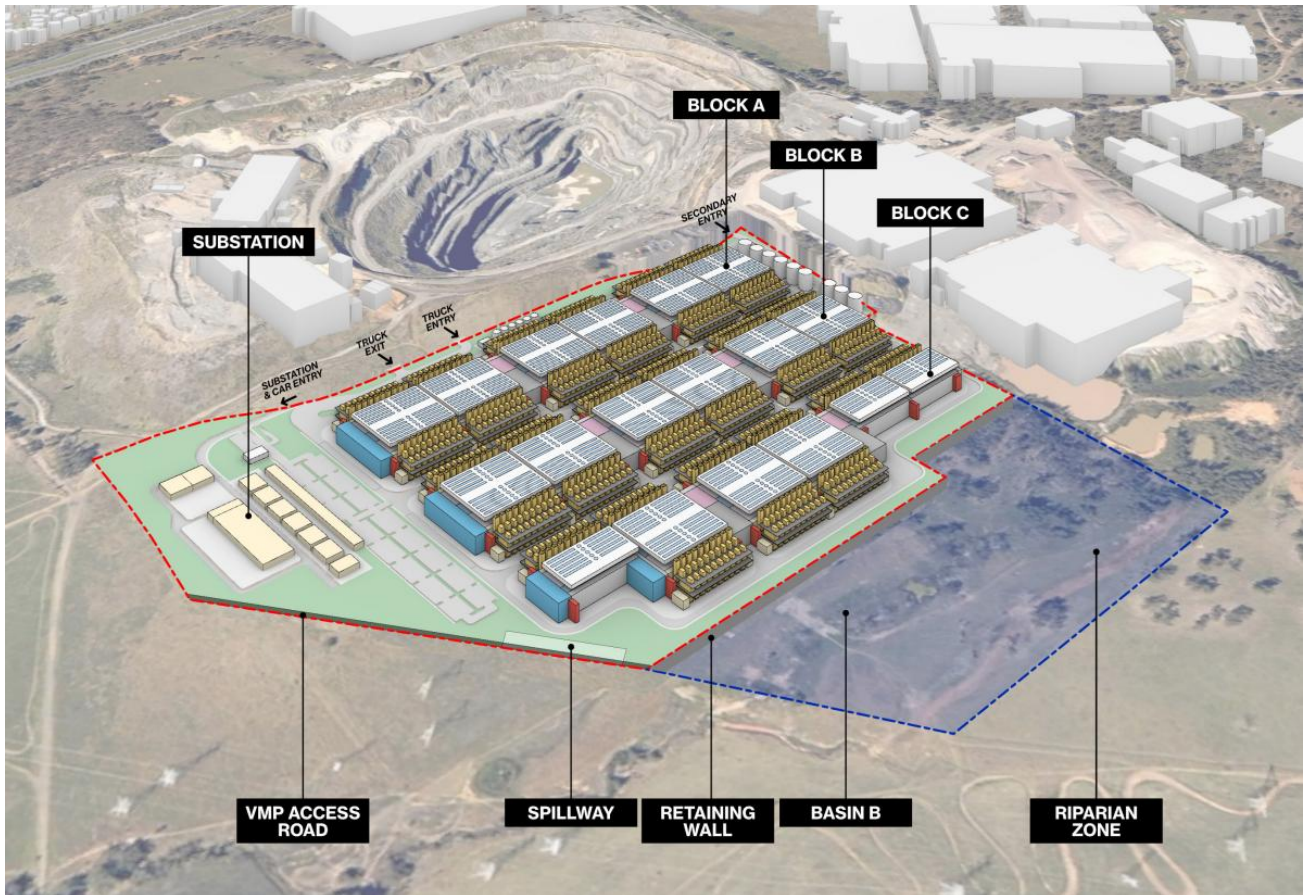
Source: Architectus, 2026

Figure 16 Proposed Section



Source: Architectus, 2026

Figure 17 Proposed Axonometric Render



Source: Architectus, 2026

4.2.2 Site Preparation Works

Removal of existing structures and hardstand areas will be undertaken in accordance with demolition plans submitted with the EIS and supported by a Waste Management Plan (**WMP**). Other site preparation works will include tree removal and installation of services across the site. Bulk earthworks are expected across both Lot 7 and Lot 13 to accommodate the future design specifications of the data centre development. These will be detailed in Civil Plans accompanying the EIS.

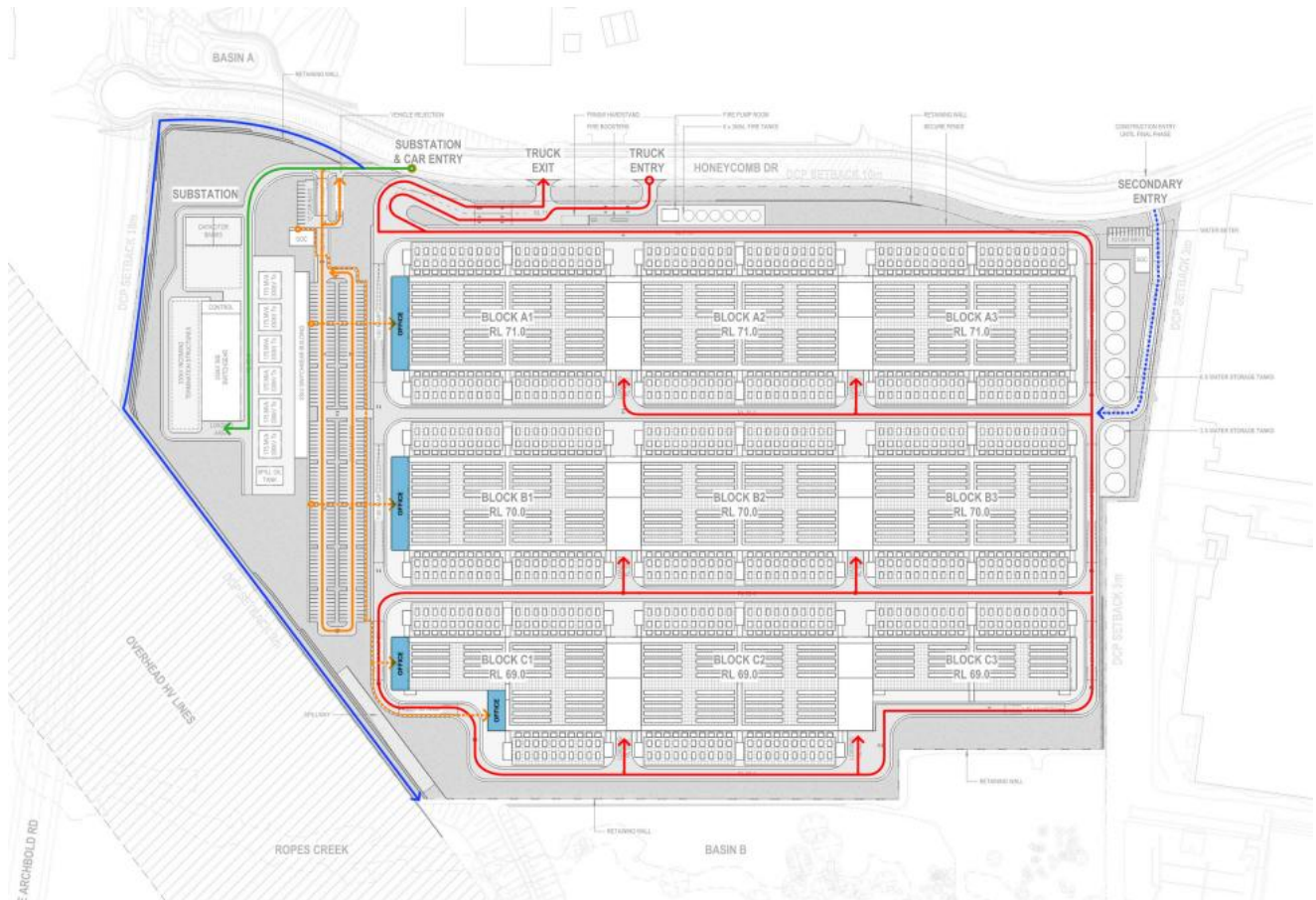
4.2.3 Access and Car Parking

Vehicle access will be provided from Honeycomb Drive along the northern boundary, connecting to the internal road network. Four crossovers are proposed, separating truck, staff vehicle and substation access (**Figure 18**).

Truck movements will occur via the central site area, with circulation provided by perimeter roads and central accessways. Internal roads will be designed in accordance with Council standards.

The development will provide 330 car parking spaces, along with motorcycle and bicycle parking and end-of-trip facilities. A Civil Report, detailed civil plans and a Traffic Impact Assessment will accompany the application to address relevant engineering and traffic requirements.

Figure 18 Proposed Circulation



Source: Architectus, 2026

4.2.4 Landscaping

Landscaping will comprise native and endemic trees, shrubs and grasses to provide amenity and an attractive streetscape. Existing trees will be retained where possible, with any removals offset by replacement planting. Species that are present within the existing Vegetation Management Plan (**VMP**) at the southern section of the site will be incorporated into the proposed planting schedule to ensure consistency across the site. The design will seek to strengthen the urban tree canopy and soften the proposed built form through planting within setbacks.

4.2.5 Vegetation

The proposal includes approximately 18,143.71m² of deep soil landscaping, primarily within boundary setbacks to create a vegetated buffer to the public domain. Species selection will accord with Council's Tree Planting List and the existing VMP. Any future fencing will be set behind landscaped areas to maintain a green interface with the public domain surrounding the site.

4.2.6 Infrastructure, Servicing and Plant Equipment

Power Connection

NEXTDC has engaged TransGrid and Lumea in the early planning of the project's electrical connection. It is proposed that the S7 development will be serviced by two 330kV transmission lines from the Sydney West Bulk Supply Point to a new on-site 330kV switching station and 330kV/33kV substation.

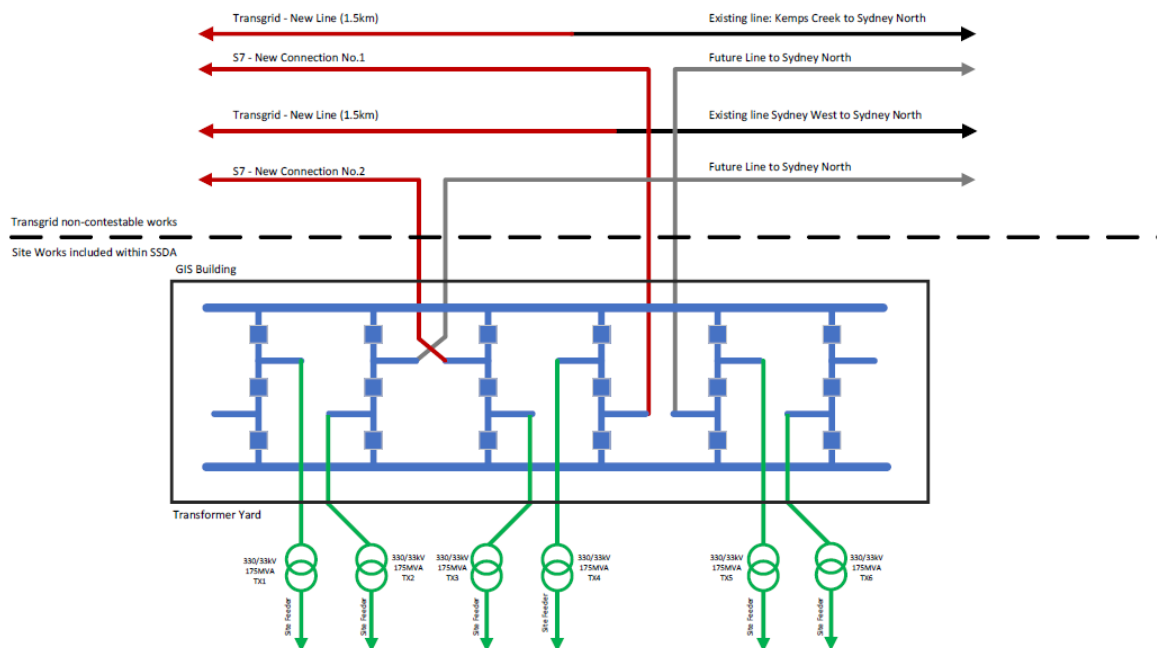
The SSDA will include the construction of the on-site switching station and substation. The proposed transmission lines are non-contestable works to be delivered by TransGrid. While these lines will service the S7 development, the switching station will also facilitate broader network connectivity and enable future connections for other users.

Advice will be sought from the Planning Secretary to confirm that the transmission lines do not form part of the single proposed development, with TransGrid to undertake these works under Part 5 of the EP&A Act.

Site Capacity

The expected total site load is approximately 700MW, with infrastructure designed to support up to 875MVA. NEXTDC is continuing discussions with TransGrid and AEMO to confirm and support the proposed load requirements.

Figure 19 Concept Schematic – Electrical Services



Source: NEXTDC, 2026

Transmission Infrastructure

The proposed transmission lines are to be located within the existing TransGrid transmission corridor connecting Sydney West to Sydney North. These works include the upgrade and/or replacement of existing transmission towers to accommodate the additional lines.

Importantly, these transmission works are external to the S7 site and do not form part of the SSD application. They are non-contestable network infrastructure to be delivered by TransGrid under a separate approval pathway.

The development provides for two connection points within the S7 site to facilitate integration with the broader transmission network. These connection points may be utilised by TransGrid to support future network connections to the north.

[illegible]

Water and Cooling

The system is designed to achieve an annualised Water Usage Effectiveness (**WUE**) of approximately 0.16 L/kWh, subject to detailed design and final equipment selection. Compared to conventional cooling towers, this system significantly reduces water consumption.

NEXTDC has commenced engagement with Sydney Water regarding interim potable water supply for Stage 1, as well as potential recycled water opportunities, including supply from the St Marys Advanced Water Treatment Plant. Investigations are also underway with coNEXA to identify potential connections to the recycled water main associated with the S4 development.

The final water servicing strategy will be confirmed as part of the SSDA.

Backup Generation

The development will include approximately 330 diesel generators rated at 3.4MW each, providing a total installed capacity of 1,122MW. This includes redundancy and spare capacity, with a maximum operational load of approximately 900MW at any one time.

Generators will be tested periodically in accordance with an operational protocol designed to minimise cumulative impacts. This will include:

- coordination of testing with nearby data centres within a 5km radius
- limiting total testing (including warm-up and cool-down) to no more than 200 hours per year
- restricting testing to a maximum of 12 generators at any one time, and no more than four generators per building

These parameters will inform the air quality and emissions assessment prepared for the SSDA.

On-site Fuel Storage

The final fuel storage strategy is currently being refined. It is anticipated that the site will store sufficient diesel to provide between 24 and 48 hours of operation in the event of a total power outage.

Based on current assumptions, this equates to an on-site storage capacity in the order of 8,000 to 14,000 kilolitres. The final storage volumes and configuration will be confirmed in the SSDA documentation.

4.2.7 Development Timing

The project will be carried out in stages, with individual phases as detailed below:

- Site preparation works including removal of existing structures, tree removal, earthworks within Lot 7, utility services and stormwater management,
- Site remediation (if required),
- Construction of data halls, associated utilities, internal roads and the car park.
- Landscaping and external works

Construction of the project is expected to occur for a total period of 42 months. The indicative construction staging, and estimated duration of construction is summarised in **Table 9**. It is noted this is indicative and that a detailed construction timeline will be confirmed once a contractor has been appointed.

Table 9 Preliminary Construction Schedule

Construction Activities	Duration (Months)	Commencement
Bulk earthworks (largely completed under existing MOD23-00703)	9	May 2026 – February 2027
Construction – Building A	18	November 2026 – May 2027
Construction – Building B	18	May 2027 – November 2028
Construction – Building C	18	May 2028 – November 2029

4.3 Feasible Alternatives

The *Environmental Planning and Assessment Regulation 2021 (EP&A Regulation)* has been updated and Section 192 no longer requires an analysis of any feasible alternatives to the proposed development, including the consequences of not carrying out the development.

Notwithstanding this, NEXTDC has identified three alternatives in response to the need for the proposed data centre. These options are outlined in the table below.

Table 10 Analysis of Feasible Alternatives

Option	Comment
Option 1 – Consequences of not carrying out the development.	This option was dismissed as the objectives of the project would not be met. If the proposal was not to proceed, the site would remain underutilised, foregoing an opportunity to provide infrastructure and employment opportunities. This scenario would retain the predominately vacant site, which is becoming increasingly redundant in the context of the changing architectural design and function of modern industrial developments.
Option 2 – Alternate locations	Consideration was given to carrying out development on alternative sites; however, these were dismissed as follows: ▪ The alternative sites were close to sensitive land activities, including residential development, and potential impacts could not be mitigated, ▪ The alternative sites outside proximity to other NEXTDC data centres or adequate transport, electricity or water infrastructure, ▪ The alternative sites were physically constrained and could not accommodate the required scale of development, and/or ▪ The alternative sites were constrained by environmental sensitive areas, including heritage, bushfire or flooding.
Option 3 – Alternative design	A range of design options were explored for the building layout including alternatives to minimise impacts on vegetation and biodiversity. Substantial setbacks to the areas of biodiversity would increase height of the data halls which raises amenity concern for nearby receivers and the public domain. This option was therefore not considered appropriate.
Option 4 – The proposal	The siting and design of the proposed data centre was resolved through a comprehensive analysis of the site opportunities and constraints. The proposal has been developed in consultation with key stakeholders to minimise impacts, while achieving positive amenity, planning and design outcomes. The proposal was identified as being the most suitable option to achieve the Project objectives for the following reasons: ▪ The site is strategically positioned within the Eastern Creek Precinct, a recognised and expanding industrial hub in the WSEA, ▪ The proximity to other NEXTDC data centres enables operational efficiencies and business synergies, supporting economic activity in both the WSEA and greater Western Sydney, ▪ The proposal can be achieved without having unacceptable environmental impacts in relation to traffic, noise, heritage, biodiversity and visual impacts, and ▪ The site offers the most cost-effective opportunity to deliver a new, high-quality data storage facility that contributes to the local infrastructure network.

5 Statutory Context

This section of the report provides an overview of the key statutory requirements relevant to the site and the project, including:

- *Commonwealth Environmental Protection and Biodiversity Conservation Act 1999* (**EPBC Act**),
- *NSW Biodiversity Act 2016* (**BC Act**),
- *NSW Environmental Planning and Assessment Act 2021* (**EP&A Act**),
- *NSW Environmental Planning and Assessment Regulation 2021* (**EP&A Regulation**),
- *NSW Protection of the Environment Operations Act 1997* (**PoEO Act**),
- *State Environmental Planning Policy (Planning Systems) 2021* (**Planning Systems SEPP**),
- *State Environmental Planning Policy (Transport and Infrastructure) 2021* (**T&I SEPP**),
- *State Environmental Planning Policy (Resilience and Hazards) 2021* (**R&H SEPP**),
- *State Environmental Planning Policy (Biodiversity and Conservation) 2021* (**B&C SEPP**),
- *State Environmental Planning Policy (Industry and Employment) 2021* (**I&E SEPP**),
- *State Environmental Planning Policy (Sustainable Buildings) 2022* (**Sustainable Buildings SEPP**),
- *State Environmental Planning Policy (Precincts—Western Parkland City) 2021* (**WPC SEPP**),
- *Blacktown Local Environmental Plan 2015* (**BLEP2015**),
- *Stage 3 Eastern Creek Precinct Plan* (**ECPP**), and
- *Blacktown Development Control Plan 2015* (**BDCP2015**).

The following table categorises and summarises the relevant requirements in accordance with the DPHI guidelines. Each of these matters will be addressed in further detail within the future EIS.

5.1 Statutory Requirements

The following table categorises and summarises the relevant requirements in accordance with the DPHI *State Significant Development Guidelines*.

Table 11 Identification of Statutory Requirements for the Project

Statutory Relevance	Action
Power to grant approval	Under Schedule 1, Section 25 of the Planning Systems SEPP, development for the purpose of data centres that has a total power consumption of more than 15 megawatts is classified as SSD as stated by the following: <i>25 Data centres</i> (1) <i>Development for the purpose of storage premises used for the storage of data and related information technology hardware that has a total power consumption of more than the relevant amount.</i> (2) <i>In this section — relevant amount means—</i> a) <i>for development in relation to which the relevant environmental assessment requirements are notified under the Act on or before 31 May 2023—10 megawatts, or</i> (b) <i>for any other development—15 megawatts.</i>

Statutory Relevance	Action
	The proposed data centre on the site will have a total power consumption of 612 megawatts and accordingly, is to be assessed as an SSDA.
Permissibility	The site is zoned IN1 General Industrial under the I&E SEPP. The proposal comprises the construction and operation of a data centre, which is a form of 'light industry' and accordingly, is permissible with consent in the zone.
Other approvals (General)	▪ NSW National Parks & Wildlife Act 1974 The site contains Aboriginal archaeological items. Under section 90 of the <i>National Parks & Wildlife Act 1974</i>, an Aboriginal Heritage Impact Permit (AHIP) is not required for State Significant Development. An ACHAR will be prepared in consultation with Aboriginal stakeholders, consistent with previous archaeological investigations undertaken on Lot 13. ▪ NSW Heritage Act 1977 The site is not affected by any heritage listings or draft heritage listings on the NSW State Heritage Register and therefore no approvals will be required under the <i>Heritage Act 1977</i>. ▪ NSW Roads Act 1993 The project includes four vehicle crossovers connecting to Honeycomb Drive. In accordance with section 138 of the <i>Roads Act 1993</i>, approval will be required from TfNSW. ▪ NSW Water Management Act 2000 The EIS will consider the <i>Guidelines for Controlled Activities on Waterfront Land and the NSW Aquifer Interference Policy (2012)</i> in the assessment and supporting documentation, noting the proximity of the site to the tributary of Ropes Creek. ▪ Commonwealth Environment Protection and Biodiversity Conservation Act 1999 Under the EPBC Act, actions likely to significantly impact Matters of National Environmental Significance must be referred to the Commonwealth Minister for the Environment. Preliminary investigations indicate potential MNES may occur on the site; however, a significant impact is not anticipated in accordance with the <i>Significant Impact Guidelines 1.1 – Matters of National Environmental Significance</i>. Ecological advice will be sought to determine whether a BDAR or a waiver is appropriate, and the EIS will assess biodiversity impacts and identify mitigation measures accordingly. ▪ NSW Protection of the Environment Operations Act 1997 Schedule 1 of the POEO Act identifies activities requiring an Environment Protection Licence (EPL). Relevant to the project is chemical storage under Section 9. Given the anticipated volume of on-site diesel storage, the activity is expected to exceed the applicable threshold and will require an EPL. ▪ NSW Biodiversity Conservation Act 2016 The developable area is predominantly cleared. Remnant vegetation within Lot 13 is currently being assessed for removal under MOD-23-00703. Scattered vegetation also occurs within Lot 7, which is not mapped as high biodiversity value; however, it has not been assessed and may require a BDAR. Ecological advice will be obtained to determine whether a BDAR or a waiver is appropriate.

5.2 Pre-Conditions

Table 12 outlines the pre-conditions to exercising the power to grant approval which are relevant to the project.

Table 12 Pre-Conditions

Pre-conditions to Granting Consent	Comment
Section 4.24 of the EP&A Act – Concept Development Consent	There is no concept proposal for the development site.
Section 175 of the EP&A Regulation – Infrastructure and environmental impact assessment	SEARs will be issued by the Secretary under section 175 of the EP&A Regulation and will identify the detailed information required by sections 190 and 192, including a statement prepared by a Registered Environmental Assessment Practitioner (REAP).
Section 66 of the EP&A Regulation – Contributions plans for certain areas in Sydney	A consent authority cannot determine a development unless a contribution plan applies to the land. A contribution is not required where the applicant has entered into a planning agreement under Part 7 of the Act addressing those matters. The VPAs entered under previous development consents for the site have been executed. These VPAs required the payment of contributions in accordance with Section 7.11 Contributions Plan No. 18 – Eastern Creek Stage 3. As these obligations have been satisfied, no further Section 7.11 contributions are required in respect of the SSD application.
WPC SEPP	Chapter 4 establishes pre-conditions to granting consent for development within the Aerotropolis. The site is outside the Aerotropolis; however, the following provisions remain relevant considerations: - Section 4.19 Wildlife hazards, - The site is located within the 13km wildlife buffer zone under the WPC SEPP. As such, an Ecological Assessment will be undertaken to determine the extent and potential presence of wildlife on the site. The findings will determine if further assessment or mitigation measures are required. - Section 4.22 Airspace operations. - The proposed maximum height of the data centre development measures approximately 22.41m from the EGL. As such, it is not considered that any impact to airspace operations would occur. The finalised Architectural Plans will specify the maximum height of the proposal.
B&C SEPP	Chapter 2 protects biodiversity values of trees and vegetation on site. Section 2.6 requires approval for clearing vegetation in non-rural areas and Section 2.15 requires a BDAR where clearing exceeds applicable thresholds. Ecological advice will be sought to determine the requirement of a BDAR or the applicability of a BDAR Waiver.
T&I SEPP	Section 2.48 requires referral of development within or adjacent to an electricity easement to TransGrid or Ausgrid. Section 2.122 requires referral of data centre development with access to a road to Transport for NSW. A Traffic Impact Assessment (TIA) will assess traffic conditions, access and parking, road network capacity, and pedestrian and cycling impacts, including

Pre-conditions to Granting Consent	Comment
	changes to traffic volumes on Honeycomb Drive and the internal road network.
R&H SEPP	Section 4.6 requires the consent authority to be satisfied the land is suitable for the proposed use in its current or remediated state. Chapter 3 requires an appropriate level of assessment for hazardous or offensive industries and consideration of potential impacts. A Preliminary Hazard Assessment will be conducted to determine the presence and impacts of contamination and hazardous materials at the site.

5.3 Mandatory Considerations

Table 13 outlines the relevant mandatory considerations to exercising the power to grant approval and the section where these matters are addressed within the EIS.

Table 13 Mandatory Considerations

Statutory Reference	Mandatory Consideration
Consideration under the EP&A Act and EP&A Regulation	
Section 1.3	The relevant objects of the EP&A Act will be addressed in the EIS
Section 4.15 (1)(a)(i) Relevant environmental planning instrument	All relevant EPIs will be addressed in the EIS.
Section 4.15 (1)(a)(ii) Relevant draft environmental planning instrument	N/A
Section 4.15 (1)(a)(iii) Relevant development control plan	The BDCP2015 will be considered as part of the SSDA.
Section 4.15 (1)(a)(iiia) any planning agreement or draft planning agreement	The site is subject to several previously executed VPAs. All obligations under the relevant VPAs have been met and will continue to be met following development of the data centre. If any amendment to an existing VPA is required, this will be appropriately addressed in the EIS. The proposal will require contributions under the Housing and Productivity Contributions (HPC) for industrial development. The contributions will be calculated at future stages of the development.
Section 4.15 (1)(a)(iv) relevant matters prescribed by the Regulations.	The following relevant matters are applicable and will be addressed in the EIS. - Section 61 – Additional matters that consent authority must consider - Section 62 – Consideration of fire safety - Section 63 – Consideration for erection of temporary structures - Section 64 – Consent authority may require upgrade of buildings

Statutory Reference	Mandatory Consideration
	- Section 66 – Contributions for certain areas in Sydney – the Act, s4.16(1) - Section 66A – Council related development applications – the Act s4.16(11) - Section 67 – Modification or surrender of development consent or existing use right – the Act, s 4.17(5) - Section 68 Voluntary surrender of development consent – the Act s4.63
Section 4.15(1)(b) the likely impacts of that development, including environmental impacts on both the natural and built environments, and social and economic impacts in the locality,	The likely impacts of the development have been identified in Section 7 of this Scoping Report including those matters requiring further assessment in the EIS.
Section 4.15(1)(c) The suitability of the site for the development	The EIS will assess the suitability of the site, including compatibility with the locality and site attributes.
Section 4.15(1)(d) Any submissions made in accordance with the Act or regulations	Early engagement will be undertaken with the community and agencies. A detailed response to submissions will be provided following exhibition of the EIS.
Section 4.15(1)(e) The Public Interest	The public interest will be addressed in the EIS, including consistency with Commonwealth, State and local strategic policy.
Section 4.24 Status of concept development applications and consents	N/A
Section 4.38 Consent for State significant development	Sets out the provisions for determining a State significant development.
Mandatory relevant considerations under EPIs	
I&E SEPP	The I&E SEPP establishes the land use zoning and development controls applying to the site. The following provisions will be addressed in the EIS: - Chapter 2 Western Sydney employment area. - Section 2.2 Land use permissibility and consistency with zone objectives, - Section 2.17 – Requirement for development control plans. The SSDA will provide consideration to the BDCP2015, - Section 2.18 – Existing precinct plans under SEPP 59. The SSDA will provide an assessment against the provisions of the Stage 3 Eastern Creek Precinct Plan, - Part 2.4 Development Standards: - Section 2.19 Ecologically sustainable development, - Section 2.20 Height of buildings, - Section 2.21 Rainwater harvesting, - Section 2.23 Development involving subdivision,

Statutory Reference	Mandatory Consideration
	• Section 2.24 Public utility infrastructure, • Section 2.25 Development on or in vicinity of proposed transport infrastructure routes, • Section 2.30 Design principles, • Section 2.31 Preservation of trees or vegetation, • Section 2.34 Development of land within or adjacent to transport investigation area, • Section 2.40 Earthworks, • Section 2.44 Stormwater, water quality and water sensitive design, and ▪ Chapter 3 Signage. The EIS will include a detailed assessment against the relevant provisions within the I&E SEPP.
R&H SEPP	Section 3.10 Potentially hazardous or offensive development will be assessed as part of the SSDA. A Preliminary Hazards Analysis will be provided, assessing the hazards, emissions and risks associated with data centre development. Section 4.6 Contamination and remediation will be assessed as part of the SSDA. A Detailed Site Investigation (DSI) will be conducted to ensure site suitability for the proposed development. Any required remediation or further investigation will be addressed in the EIS.
T&I SEPP	Section 2.48 Electricity transmission and distribution infrastructure impacts will be assessed. An Infrastructure and Staging Delivery Plan will address the power supply, substation connection and general transmission requirements. Section 2.122 Traffic generating development will be assessed. As mentioned, a TIA will accompany the EIS to provide a detailed assessment of the cumulative impacts of construction and operation of the proposed data centre.
B&C SEPP	Chapter 2 Vegetation in non-rural areas will be assessed as part of the SSDA. Landscape Plans will detail the proposed vegetation in accordance with the existing VMP on the site. Details of the planting schedule, quantity and layout will be addressed within the Landscape Plans.
Sustainable Buildings SEPP	Section 3.2 Non-residential development requirements will be addressed in the SSDA. In accordance with the Sustainable Buildings SEPP, an Ecologically Sustainable Design (ESD) Report will be provided, inclusive of a NABERS embodied emissions form. Section 3.3 Additional requirements for large commercial development will be assessed. The assessment within the ESD report will provide details on greenhouse gas emissions, climate risk and resilience, operational performance targets and water sensitive urban design (WSUD).

Statutory Reference	Mandatory Consideration
Considerations under other legislation	
BC Act Part 7 and Part 8(2)	The likely impact of the proposed development on biodiversity values will be assessed in either a BDAR or BDAR waiver. The Minister for Planning may (but is not required to) further consider under that BC Act the likely impact of the proposed development on biodiversity values. Biodiversity matters are addressed in Section 6 of this report and will be addressed in detail within the EIS.
EPBC Act	Chapter 2 of the EPBC Act establishes controls for assessing and regulating the environmental impact of activities (including development) where MNES may be affected. Under the EPBC Act, any action which has, will have, or is likely to have a significant impact on MNES is defined as a “controlled action” and requires approval from the relevant Commonwealth Minister. Assessment of significance is not required in accordance with the <i>Significant Impact Guidelines 1.1 – Matters of National Environmental Significance</i> published by the Commonwealth Department of Agriculture, Water and the Environment. If required, a BDAR will be submitted as part of the EIS and will be included an assessment against the requirements of the EPBC Act.
WM Act	Section 91 regulates controlled activity approvals and aquifer interference approvals. For State significant development, a water use approval, water management work approval or controlled activity approval (other than an aquifer interference approval) is not required. Notwithstanding, the proposal will have regard to the Guidelines for Controlled Activities on Waterfront Land and the NSW Aquifer Interference Policy 2012, which will be considered and addressed within the EIS and supporting technical documentation.
Roads Act 1993	Section 138 regulates works and structures in, on or over a public road including requirements for concurrence from TfNSW. The Guide for Traffic Generating Developments will be considered as part of the Transport Assessment for the project and assessed within the EIS.
Precinct Plan	
ECPP	The Stage 3 Eastern Creek Precinct Plan will be addressed in detail within the EIS. Consideration will be given to the following – ▪ Section 3 – Economic development and employment, ▪ Section 4 – General services, ▪ Section 5 – Stormwater management, ▪ Section 7 – Environmental management, ▪ Section 8 – Biodiversity, ▪ Section 9 – Heritage, ▪ Section 10 – Traffic and transport, ▪ Section 11 – Urban design,

Statutory Reference	Mandatory Consideration
	▪ Section 12 – Community services, ▪ Section 13 – Open spaces, and ▪ Section 14 – Landscaping.
Development Control Plan	
BDCP2015	In accordance with Section 2.10(1) of the Planning Systems SEPP, there is no requirement for assessment of the project against the BDCP2015. Notwithstanding, the proposal will consider the following parts of the BDCP2015: ▪ Part A – Introduction and general guidelines, ▪ Part E – Development in industrial zones, ▪ Part G – Site waste management and minimisation, ▪ Part I – Contaminated land guidelines, and ▪ Part J – Water sensitive urban design and integrated water cycle management.
Development Contributions Plans	
Section 7.11 Contributions Plan No.18 – Eastern Creek Stage 3	Base contributions within Stage 3 – Eastern Creek Precinct as listed below: ▪ Water Management – Ropes Creek Tributary: \$1,215,144 per hectare, and ▪ Traffic Management – Quarry Link Road: \$27,748 per hectare – Eastern Creek Precinct 3: \$3,415 per hectare Previous DAs on the site have required the payment of Section 7.11 contributions. As these contributions have already been paid, no further Section 7.11 contributions are required as part of the SSD application.
Housing Productivity Contribution	The relevant base rate for the HPC is \$15 per square metre of new industrial GFA. The total contributions payable will be calculated upon completion of a finalised design.

6 Community Engagement

The following sections of the report describe the engagement activities that have already been carried out for the project, and the engagement to be carried out during the preparation of the EIS.

6.1 Engagement Carried Out

The proposed development reflects discussions with the following key agencies:

Table 14 Agency Engagement

Agency	Date	Comments/Feedback
TransGrid	12/12/2025	Key outcomes: ▪ NEXTDC is responsible for obtaining approvals for the onsite substation works (contestable scope). ▪ The transmission line works form part of TransGrid infrastructure and are intended to be assessed separately under Part 5 of the EP&A Act (self-determination), subject to: – a determination under Section 4.38 of the EP&A Act by the Planning Secretary confirming the non-contestable works are separate from, and do not form part of, the single proposed development (S7 Data Centre), to be sought by NEXTDC at its own risk; and – confirmation that environmental impacts are not significant.
Adjoining landowner (Jacfin)	30/03/2026	A letter was issued to the adjoining landowner providing a high-level overview of the project and inviting them to attend a project briefing. The letter has been acknowledged, however no confirmation has been received regarding participation in the briefing.

Once the SEARs are received, the Applicant will proceed with the formal consultation process as part of preparing the EIS, as detailed in **Section 6.2**.

6.2 Future Engagement to be Carried out by the Applicant

Further community and stakeholder consultation will be undertaken in the preparation and assessment of the EIS including:

- **Key Stakeholders:** it is proposed to consult with the following stakeholders during the preparation of the EIS:
 - DPHI,
 - Blacktown City Council,
 - Transport for NSW,
 - Sydney Water,
 - Rural Fire Service,
 - TransGrid,
 - Jemena, and
 - NSW Environmental Protection Authority (**EPA**).
- **Other Interested Stakeholders:** additional stakeholders may be identified during the preparation of the EIS.

- **Key Actions:** the following actions will be undertaken to keep the community informed regarding the project, obtain feedback from the community on the project and engage with stakeholders on the detailed assessment of key matters:
 - A dedicated engagement strategy will be prepared following the issue of SEARs,
 - Additional consultation actions may be identified following further engagement with key stakeholders and DPHI, and
 - The EIS and supporting documentation will be placed on public exhibition, providing stakeholders with an additional opportunity to review the Project, including the final development plans and the detailed specialist studies and assessment reports accompanying the final EIS.
- The proposed actions are consistent with the community participation objectives in the Undertaking Engagement Guidelines for State Significant Projects. An engagement consultant will be responsible for monitoring, reviewing and adapting the effectiveness of the engagement strategy to encourage community participation in the Project.

An Engagement Outcomes Report will be provided with the EIS.

7 Proposed Assessment of Impacts

This section identifies the key impacts which will be further investigated and assessed within the EIS, including the proposed approach to assessing each of these matters. It also identifies the matters addressed in the Scoping Report phase that are unlikely to result in significant impacts and do not warrant further consideration in the EIS.

7.1 Matters Requiring Further Assessment in the EIS

Table 15 outlines the relevant matters and impacts which will be addressed in detail within the EIS. It outlines the matters and impacts of particular concern to the community and other stakeholders.

Table 15 Matters requiring assessment in the EIS

Matter	Consideration
Statutory Context	The EIS will demonstrate consistency with the relevant planning framework and approval pathway for the development.
Estimated Development Cost and Employment	The estimated development cost (EDC) will be assessed and addressed within an EDC report. The proposal is an employment-generating development positioned to create new opportunities within the WSEA. The employment generation is a direct response to: ▪ Forecasted population growth, ▪ Existing supply and vacancy rate for employment lands, and ▪ Proposed supply of employment lands.
Design Quality	The SEARs issued for the project will require that the development exhibit design quality. An assessment against the relevant matters for consideration will be undertaken in the Urban Design Report and EIS. The project is not required to be reviewed by the State Design Review Panel (SDRP).
Built Form and Urban Design	The proposal comprises three interconnected two storey buildings (Blocks A, B and C) with a maximum height of 22.41 metres and a total GFA of approximately 174,411m². Concept Architectural Plans are provided at Appendix A. The built form responds to site topography and the surrounding industrial context and incorporates façade articulation, setbacks and landscape treatment to reduce perceived bulk and improve the public domain interface. The design addresses site levels, earthworks and retaining walls and will be supported by a cumulative impact assessment. Landscaping will respond to cut and fill conditions and retaining wall treatments and will maximise canopy cover to improve shade and reduce urban heat island effects. The development will complement the surrounding height, scale and character through appropriate articulation, setbacks and landscape buffering. The EIS will include detailed Architectural Plans and a Design Report addressing Better Placed principles, together with a BCA Compliance Report and Accessibility Report demonstrating compliance.
Visual Impact	The site is located within an established industrial precinct and is characterised by a largely modified landscape with limited existing built form, aside from the Fulton Hogan Asphalt Plant in the northern portion of the site. The broader visual context includes large-scale warehouse and distribution facilities to the east, cleared land and transmission easements to the west, and low-density residential development further to the north and west beyond the M4 corridor.

Matter	Consideration
	MOD-23-00703 establishes a revised site pad across most of the site, falling from north to south, with an approximate level difference of 15 metres supported by amended retaining walls. This responds to the site's overall topography, which falls from approximately RL80 at the northern boundary to RL55–60 in the south. The visual catchment of the site is constrained due to the underlying topography, existing vegetation, and surrounding development patterns. Potential public domain views are generally limited to sections of Honeycomb Drive, Archbold Road, and localised elevated vantage points, while more distant views may be available from parts of the Erskine Park residential area, particularly from elevated or two-storey dwellings. In these instances, the site would be perceived within a broader visual composition rather than as a dominant element. Visual impacts will be assessed in a Visual Impact Assessment (VIA), including impacts on key viewpoints, vistas and overall visual amenity, having regard to the proposed landscaping, building design and supporting works. The scale of the data centre in combination with the modified topography will be assessed from a range of surrounding public domain viewpoints, including: ▪ Western residential area, ▪ Honeycomb Drive frontage, ▪ Proposed Archbold Road extension, and ▪ Lower elevations of the regional basin and surrounding areas. The VIA will be informed by fieldwork and photographic documentation and will include photomontages prepared from representative viewpoints to test the height, form and scale of the proposal within both immediate and wider visual contexts. Key viewpoints identified for assessment include locations within nearby residential areas, along Honeycomb Drive, and along Archbold Road, with additional viewpoints to be included where required to assess bulk and scale. Preliminary visual advice (Appendix E) confirms that, given the constrained visual catchment and industrial character of the surrounding area, potential visual impacts are expected to be localised and generally limited in extent.
Traffic, Transport and Access	Vehicular access will be provided from Honeycomb Drive along the northern boundary, connecting to the internal road network. Four crossovers will separate truck, staff and substation access. Truck movements will occur through the central site, with circulation via perimeter roads and central accessways. Internal roads will be designed in accordance with Council standards. The proposed Archbold Road extension is expected to provide additional access from the north-western corner and western boundary, with ongoing coordination to ensure an integrated design outcome and potential future access opportunities. The development will provide approximately 330 car parking spaces, together with motorcycle and bicycle parking and end-of-trip facilities. A TIA will assess traffic conditions, access and parking, road network capacity, and pedestrian and cycling impacts, including changes to traffic volumes on Honeycomb Drive and the internal road network. A Civil Report and detailed civil plans will accompany the EIS. Construction traffic impacts will be managed through a Construction Traffic Management Plan, and a Green Travel Plan will be prepared to minimise operational traffic impacts and support sustainability objectives.
Trees and Landscaping	Vegetation removal associated with the development will be limited to scattered trees within the developable area. The southern portion of the site, including the bioretention basin, will remain unchanged.

Matter	Consideration
	An Arboricultural Impact Assessment (AIA) will be prepared as part of the EIS to identify tree removal and protection measures, and to inform landscape replacement and planting strategies. The proposal includes deep soil landscaping within site setbacks to provide a vegetated buffer to the public domain. Plant species will be selected in accordance with applicable guidelines and management plans. Any future fencing will be located behind landscaped areas to maintain a green interface with surrounding public areas.
Ecologically Sustainable Development	An ESD Report will be prepared to assess the sustainability performance of the development in accordance with section 193 of the EP&A Regulation. The assessment will address: ▪ Greenhouse gas emissions, ▪ Building design and layout, ▪ Embodied emissions, including preparation of a NABERS embodied emissions submission, ▪ Climate risk and resilience, ▪ Operational performance targets, ▪ WSUD, ▪ Material selection, and ▪ Energy consumption. The ESD report will provide an assessment of the proposal and demonstrate ways in which the development can achieve best practice and compliance with sustainability requirements.
Biodiversity	The developable portion of the site is predominantly cleared. Remnant vegetation within Lot 13 is currently being assessed for removal under MOD-23-00703. Scattered vegetation also occurs within Lot 7, which is not mapped as high biodiversity value and has not yet been assessed. The southern portion of the site contains a mapped riparian corridor; however, the proposed development footprint does not extend into this area. Ecological advice will be obtained to determine whether the proposed clearing requires a BDAR or whether a waiver may be pursued.
Back-up Power System	The proposal includes approximately 320 to 340 diesel generator sets (3.1MW each) to provide resilient back-up power for data hall IT systems and associated mechanical and electrical infrastructure during grid supply interruptions, together with smaller ancillary generators for essential services. A Back-up Power Report will accompany the EIS outlining the generator configuration, operational parameters and testing regime, including routine run testing and annual load bank testing. Generator operation will be intermittent and managed to minimise off-site impacts.
Air Quality	An Air Quality Impact Assessment (AQIA) will assess construction and operational air quality impacts, noting the site's location within an industrial area near existing emission sources including waste and concrete processing facilities. The AQIA will include assessment of construction phase dust emissions and operational emissions from mechanical plant and generator testing using plume dispersion modelling, covering routine testing, likely emission events and worst-case scenarios.

Matter	Consideration
	The AQIA will be prepared in accordance with EPA guidelines and will identify appropriate mitigation, monitoring and management measures based on the modelling outcomes.
Noise and Vibration	The development has the potential to generate operational and construction noise and vibration, including cumulative impacts with surrounding large-scale developments and nearby residential receivers to the west. A Noise and Vibration Impact Assessment (NVIA) will be prepared as part of the EIS in accordance with the NSW EPA <i>Noise Policy for Industry, Interim Construction Noise Guideline and Road Noise Policy</i>. The NVIA will include background noise monitoring to characterise the existing acoustic environment and establish construction and operational noise criteria. Monitoring will comprise unattended measurements at representative locations over approximately seven days, supplemented by attended surveys to identify key noise sources and support data interpretation. Construction and operational noise levels will be predicted at the nearest sensitive receivers and assessed against relevant legislation, policies and standards. A 3D SoundPLAN model of the operational facility will be developed using plant sound power levels and site topography to demonstrate compliance with applicable noise limits. Where exceedances are identified, mitigation measures will be developed, tested and refined in consultation with the project team. The assessment will also inform mechanical and electrical design by establishing noise control requirements and maximum sound power levels for key plant including generators and chillers.
Ground and Water Conditions	Ground and water conditions, including major earthworks and retaining walls, are being addressed under the current modification application. A Geotechnical Report will accompany the EIS to confirm site ground and groundwater conditions, identify any residual excavation or stability risks, and inform detailed engineering design where required.
Water Management	An Integrated Water Management Plan will assess stormwater quantity and quality, drainage infrastructure, and on-site water management measures, including erosion and sediment controls. The strategy will be refined through design development, with the EIS addressing catchment capacity, potential impacts on the regional basin to the south, and any irrigation risks.
Hazards and Risks	The EIS will demonstrate the development would comply with the relevant aspects of the following standards: ▪ <i>AS/NZS 4681</i> – Storage and handling of Class 9 (miscellaneous) dangerous goods and articles, ▪ <i>A/S IEC 62619</i> – Secondary cells and batteries containing alkaline or other non-acid electrolytes – Safety requirements for secondary lithium cells and batteries, for use in industrial applications, and ▪ <i>FM Global Property Loss Prevention Data Sheet 5-32</i> – Data Centres and Related Facilities – S 1940 – Storage and handling of flammable and combustible liquids. This will be addressed in a Preliminary Hazard Analysis.
Contamination and Remediation	Previous contamination assessments identify Lot 13 as suitable for industrial use. The developable area also includes Lot 7, which has not yet been assessed and

Matter	Consideration
	may contain contamination associated with its former use as an asphalt and concrete production facility. As part of the site has not been previously assessed, a DSI is required to determine suitability for the proposed development. Any required remediation or further investigation will be addressed in the EIS.
Waste Management	The development will generate waste during site preparation, construction and operation. A WMP will be prepared in accordance with relevant waste legislation and regulatory requirements. The WMP will address both construction and operational waste streams, including waste types, storage locations, collection points and removal methods for the proposed uses.
Aboriginal Cultural Heritage	Aboriginal archaeology within Lot 13 is being assessed under the current modification application. Lot 7 has not been subject to previous disturbance and will require assessment. An Aboriginal Cultural Heritage Assessment Report (ACHAR) will be prepared to assess Lot 7. The ACHAR will document the investigation, Aboriginal community consultation and assessment of Aboriginal cultural heritage and archaeology in accordance with: ▪ Aboriginal Cultural Heritage Consultation Requirements for Proponents (2010), ▪ Guide to Investigating, Assessing and Reporting on Aboriginal Cultural Heritage in NSW (2011), ▪ Code of Practice for Archaeological Investigation of Aboriginal Objects in NSW, and ▪ Australia ICOMOS Burra Charter for Places of Cultural Significance.
Social Impact	A Social Impact Assessment (SIA) will be prepared to evaluate the project's social effects on surrounding communities, including potential impacts on way of life, health, culture and community wellbeing. The assessment will consider both beneficial and adverse outcomes and identify appropriate mitigation measures, in accordance with the NSW Social Impact Assessment Guidelines.
Infrastructure Requirements and Utilities	The site is located within an established industrial area serviced by existing utility infrastructure. The EIS will outline infrastructure requirements and the anticipated provision of services, including electricity, water, sewer and communications. The TransGrid Sydney West 330/132 kV Substation and Switchyard is located approximately 1 km south of the site, with a transmission easement immediately west enabling a direct connection. Permanent power is proposed via a 330 kV connection (up to approximately 875 MVA) to the Sydney West Bulk Supply Point. Reticulation is expected via overhead lines within the TransGrid easement; these works will be subject to separate approvals and do not form part of the SSD. A Dial Before You Dig search will identify other utility assets. Nearby water reservoirs will be assessed for potential connection as part of the EIS. The development proposes a hybrid cooling system designed to significantly reduce water consumption by operating primarily on air cooling and using water only during peak conditions. Water used for cooling will be stored and reused on site. As the technology becomes available, it is expected to align with the project's construction timeframe; in the interim the development will utilise the potable water network with on-site storage tanks. Early engagement with Sydney Water is underway regarding servicing and sustainability measures.

Matter	Consideration
	The EIS will be supported by a Utility Services and Staging Plan identifying servicing requirements and any necessary adjustments.
Bushfire Risk	The site is mapped within a bushfire prone buffer area. A Bushfire Risk Assessment will be prepared as part of the EIS to identify hazards and appropriate mitigation measures. The assessment will address building design, siting and protection of critical infrastructure, together with operational measures such as asset protection zones, emergency access and firefighting water supply, in consultation with the RFS.
Construction, Operation and Staging	The development is proposed to occur in the following stages: ▪ Stage 1: Site establishment, ▪ Stage 2: Remediation (if required), ▪ Stage 3: Construction, and ▪ Stage 4: Operation. Further detail on construction methodology, sequencing and operational staging will be provided in the EIS.
Engagement	An Engagement Outcomes Report will be provided as part of the EIS. The report will outline the engagement carried out to date, the outcomes of that engagement and how it has informed the proposal. The report will also outline: ▪ Issues raised by surrounding landowners and stakeholders, ▪ Project responses to those issues, and ▪ Proposed future community and stakeholder engagement.

7.2 Matters Requiring No Further Assessment in the EIS

This section of the report identifies the following matters that do not require further assessment in the EIS. Each of these matters was considered within the Scoping Report but considered unlikely to result in significant impacts that warrant further assessment.

- **Flooding:** The site is not located within a flood planning area or between the flood planning area and the PMF on Council's Flood Mapping. Previous flood modelling undertaken for local DAs confirmed creek flood levels are at least 2 metres below the finished site levels established under **MOD-23-00703**. Investigations under MP06_0225 also found no adverse flooding impacts on Lot 7. Accordingly, further assessment is not required.
- **Non-Aboriginal Heritage:** The site is not a heritage-listed item and is not located within a heritage conservation area. Further to this, no heritage items are located within the vicinity of the site and as such, a Heritage Impact Statement will not be required.
- **Acid Sulfate Soils:** The site is not within an area of known acid sulfate soil occurrence. No indicators of acid sulfate soils were observed during the field investigations undertaken for previous applications, including DA-21-01557. A desktop Acid Sulfate Soils Risk Assessment has been prepared (refer **Appendix D**) which confirms that it is unlikely that adverse acid sulfate soils exist within Lot 7. As such, an Acid Sulfate Soils Management Plan will not be required.

8 Conclusion

This Scoping Report has outlined preliminary information regarding the proposed development of a data centre at 1 Kangaroo Avenue, Eastern Creek. The report has outlined preliminary information regarding the site and proposal, identified the relevant strategic and statutory context, summarised the approach to engagement with stakeholders and, identified the scale and nature of the impacts of the project.

The proposal is declared SSD under Section 25, Schedule 1 of Planning Systems SEPP. We trust that the information detailed in this Scoping Report is sufficient to enable the Secretary to issue SEARs for the preparation of an EIS.

Appendix A Concept Architectural Plans

Appendix B Design Report

Appendix C Indicative Renders

Appendix D Acid Sulfate Soils Risk Assessment

Appendix E Preliminary VIA Advice

Appendix F Technical Note – Infrastructure Servicing, and Plant Equipment

Appendix G SEARs Technical Assessment Methodology